

UNIT 1: HUMAN RIGHTS EDUCATION AND PEACEBUILDING

Aim of the unit

This unit aims at equipping students with the values, knowledge, and abilities needed to avoid conflict, resolve conflicts amicably, and create a fair and sustainable society where everyone's rights and human dignity are respected.

Unit Learning outcomes

At the end of this unit, you should be able to:

1. Define key concepts, including human rights, peacebuilding, positive/negative peace, conflict transformation, and human dignity.
2. Explain the fundamental links between human rights violations, structural inequality, and the outbreak of violent conflict.
3. Describe the main phases of the conflict cycle (pre-conflict, conflict, post-conflict) and the corresponding peacebuilding interventions.
4. Apply human rights frameworks and peacebuilding theories to propose non-violent solutions to simulated or real-world community disputes
5. Describe international and national human rights enforcement mechanisms.
6. Discuss human rights in general, special rights and Human rights in the context of Rwanda.

1.1. Introduction to human rights: women's rights, children's rights, environmental rights

1.1.1. Meaning of Human rights and Human rights education

The term **Human rights** describes entitlements, privileges that every person possesses by virtue of being human.

Human rights are rights that one possesses as a consequence of being human.

Human rights are standards that recognize and protect the dignity of all human beings.

Human rights govern how individual human beings live in society and with each other, as well as their relationship with the State and the obligations that the State has towards them.

Human rights education is all learning that develops the knowledge, skills, and values of human rights. **Human rights education** is learning about, through and for human rights.

Learning about human rights: Gaining knowledge and understanding of human rights standards, principles, and values, and learning about the systems and mechanisms available to protect human rights.

Learning through human rights: Learning and teaching in a way that respects the rights of both educators and learners.

Learning for human rights: Empowering individuals to enjoy and exercise their rights and to respect and uphold the rights of others.

The United Nations Declaration on Human Rights Education and Training defines human rights education as comprising “*all educational, training, information, awareness-raising and learning activities aimed at promoting universal respect for and observance of all human rights and fundamental freedoms and thus contributing to, inter alia, the prevention of human rights violations and abuses by providing persons with knowledge, skills and understanding and developing their attitudes and behaviors, to empower them to contribute to the building and promotion of a universal culture of human rights*” (United Nations Human Rights Council 2011).

1.1.2.Philosophical foundations of human rights

Many proposed theories provide a conceptual justification for human rights, their basis and content. Some have had significant contributions to the development of modern human rights while others haven't. This section focuses on the former, highlighting their contributions and weaknesses.

i. Natural rights theory

Natural rights theory was formulated in the 17th -18th centuries. This theory defined human rights as timeless and universal truths. They inhered in every human being by virtue of his/her reason of being human. Everyone was born with human rights, and therefore, they cannot be lost without one losing oneself.

Contribution of natural rights theory

The main contribution of this theory was the adoption of early declarations – the French Declaration of the Rights of Man 1789) and the US Declaration of Independence 1776 – and the inclusion of human rights in constitutions of western countries. It also gave rise to the development of civil and political rights and freedoms e.g., property, privacy, religion, equality etc. Crucially, this theory provided the basis for the legitimacy of state authority as well as the state as the main duty bearer of human rights. Thus, the implementation and protection of human rights is the state's primary obligation.

Weaknesses of the natural rights theory

The weaknesses of the natural rights theory are

firstly that it did not provide a clear basis for determining the rights that formed part of natural law. At the time, civil and political rights to property, liberty and life were considered natural and inalienable. But this theory did not include and provide the basis for not recognizing socio-economic rights. The natural rights theory-imposed limits on governmental interference in the exercise of individual rights. This led to the development of negative obligations of the state. Furthermore, this theory claimed that everyone was born equal and free, yet not everyone was considered as equal. Slaves and women, for example, were considered as second-rate people. The rights were for certain men and not for women. Slavery and the subjugation of women were deemed to be natural. So, the theory failed to recognize that society has systemic inequalities which impede freedom and equality. This theory supported formal equality, thereby ignoring systemic disadvantages. The natural right theory also assumed that human rights are only relevant as a shield against state authority, giving rise to state obligations. Thus, human rights are still defined in relation to the state.

ii. Positivism

Positivism gained currency in the 19th-20th centuries as extraordinary progress in science was being made. In this period, philosophy based on concrete and observed facts and reduced the metaphysical basis of natural rights. Thus, the theory defined rights as those that were prescribed (approved) within the state's legal system or structure. According to HLA Hart, 'Government, among men, exists not because men have rights prior to government, which government is to preserve, but because without government and law, men have no rights and can have none.' Thus, one cannot look beyond state law to discover human rights.

Contribution of positivism

The positivism impacted on the development of human rights considerably as it replaced the natural rights theory in the 19th and 20th centuries. It led to the inclusion of rights in constitutions. Even now, much emphasis is placed on including rights in international treaties and constitutions and statutes.

Positivism, though it negates morality, is flexible because it places law reform within the control of human beings. It also reinforces the role of the state in the protection and enforcement of human rights. To date, the state is central to the protection and implementation of human rights.

Weaknesses of positivism

Positivism negates the moral basis of right by insisting on state procedures as the basis for ascertaining rights. It can thus sanction immoral laws such as

was the case in apartheid South Africa and under the Nazi regime of Germany. It also undermines the international basis of rights protection since positivism views international law as improper law because it lacks enforcement mechanism or sanctions and places much significance on domestic legal systems.

iii. Marxism

Marxism developed as a result of the industrial revolution and highlighted the poor living conditions of workers. The theory denies that human rights are immutable. Instead, it maintains that rights are an artifice of the bourgeoisie (the capitalist class who own most of society's wealth and means of production). Marxism rejected the notion that the state was a natural institution but rather that it was a reflection of and only came into being as a result of unequal distribution of commodities (which resulted in class divisions). In a capitalist environment, the state was an institution of compulsion, oppression, and exploitation by the bourgeoisie of the working class.

According to Marx, rights 'can never be higher than the economic structure of society and its cultural conditions' where the few control the means of production, natural rights become the chief means of the ruling class for maintaining a capitalist order. He criticized individual rights as a basis for protecting individual property. Rights can therefore not be defined independently from the economic context of a given society. Marxism defines rights as those that the state grants.

Contribution of Marxism

Marxism gives attention to economic, social, and cultural rights. Labour and employments rights were brought to the front as a result of this theory. In highlighting the structural inequalities in society, this theory paved the way for the development of the concept of substantive equality (which goes beyond the basics of recognizing the equality of everyone and identifies differences among groups of people with the long-term goal of greater understanding). This theory illuminated the danger of human rights serving the interests of the most powerful in society and for maintaining the status quo. It also calls attention to individual duties to the community and society, a much-neglected theme in liberal understandings of human rights.

Weaknesses of Marxism

The problem with Marxism was that it vested the power to determine rights in the authoritarian state. By vesting too much power in the socialist state, authoritarian states rise. It negated individual rights since it placed much emphasis on duties to the state and as a result most communist states

suppressed civil and political rights. Furthermore, it undermined the international system of rights as rights protection and implementation were regarded as falling in the states' exclusive domestic jurisdiction.

iv. Universalism

Universalism posits that all values, including human rights, are fully universal irrespective of cultural or historical differences. It maintains that there is only one set of human rights applicable at all times and in all places. According to this theory, human rights are universal because:

- ✓ Firstly, they have been universally accepted at least in word or as ideal standards.
- ✓ Secondly, human rights adhere to every individual by virtue of being human.
- ✓ Thirdly, some have argued that since key characteristics of western societies have become globalized, the human rights ideology as developed in the west is relevant to these societies as well. Others argued that since all societies share certain common core values such as respect for human life, concern for truth, values of cooperation, common good, justice, and obligations between individuals, human rights are universal.

Contribution of universalism

Human rights gain the status of supremacy in that they can take priority over any other considerations. Universalism is also a useful foundational block for establishing a strong international system for the promotion and protection of human rights.

Demerits of universalism

Universalism denies the importance of other cultures in the development of human rights. The international regime for human rights has been mainly influenced by the Western world and therefore reflects the cultures of those societies. Universalism therefore suggests a kind of cultural imperialism.

v. Relativism

Relativism reflects the idea that human rights are not absolute, rather they are relative to the society in which one is raised, and all cultures are morally equal and valid. Cultural relativism underlies the idea that external agents should not interfere with the internal affairs of states on the ground of state sovereignty, that a culture should not be judged by external standards.

Significance of relativism

Cultural relativism emphasizes the significance of culture in the articulation of human rights and accords respect to all cultures.

Weaknesses of relativism

Cultural relativism in its extreme form (Radical culturalism) has the effect of denying the idea of human rights because it denies that there are human rights that every human being has independent of society, history, and culture. It also undermines the international basis of human rights as it limits the concern for human rights within the domestic sphere. Furthermore, it is a theory that repressive regimes or societies easily manipulate or use to defend departures from or violations of human rights.

1.1.3.Characteristics of human rights

Human rights are:

Inherent/inborn: they are not granted by any person or authority. Human rights do not have to be bought, earned, or inherited; they belong to people simply because they are human.

Essential and necessary: they are fundamental because without them, the life and dignity of man will be meaningless. In the absence of human rights, the moral, physical, social, and spiritual welfare of an individual is impossible. Human rights are also essential as they provide suitable conditions for material and moral development of people.

Universal: Every human being, with no distinction, is entitled to human rights. Human rights are held by every person. They are guaranteed to all everywhere, regardless of race, color, sex, nationality, religion, language, political or other opinion, national or social origin, property, birth, or any other status. Human rights are enforceable without national borders (applicable everywhere). Human rights are applicable at every time, in armed conflicts and stable environments.

Equal: All human rights are equally important. All human beings hold human rights equally. In practice, however, all people may not enjoy the protection of their rights at all times.

Inalienable: they cannot be renounced or forfeited; they cannot be taken away: Nobody can deprive a person of his/her rights for any reason. People still have human rights even when the laws of their countries do not recognize them, or when they violate them - for example, when slavery is practiced, slaves still have rights even though these rights are being violated. But human rights can be violated, as they often are, but this does not mean that they are taken away from the person concerned. For example, although all persons have a right to be free from inhuman or degrading treatment, there are people all over the world who are suffering in overcrowded and unsanitary prisons, subjected to humiliating punishment, and tortured. These people have not lost their rights, but their rights have been violated.

Indivisible, interdependent, and interrelated: The realization of one human right is linked to the realization of the others. Human rights are intrinsically connected and must not be viewed in isolation from one another. For example, in order to be able to express their political opinion through a vote, citizens must be able to receive adequate information.

Internationally guaranteed: Human rights are established in international law, including treaties and other documents.

Legally protected: They are guaranteed by constitutions and domestic legislations.

Protect individuals and groups: Some human rights protect individuals (e.g., freedom of movement, right to vote, right to education), and others protect groups as such (e.g., rights of minorities, rights of indigenous people).

Oblige states and state actors: States and state actors have the responsibility to abide (act in accordance) by international human rights instruments. Violations can be punished through the individual prosecution of the concerned persons, as well as through punishment of the state by the international community in the form of embargos, sanctions, and other measures.

Where did human rights come from? Who made the rules? How did they become universal obligations that apply to everyone, everywhere, all the time?

1.1.4.Special rights

Although "human rights for all" is a powerful promise, some groups of people have historically been excluded, silenced, or treated unfairly. Special groups frequently encounter particular difficulties and structural obstacles.

This includes (but is not limited to):

- **Persons with Disabilities**
- **Indigenous Peoples**
- **Children and Youth**
- **Older Persons**
- **Refugees and Migrants**
- **Women and Girls**
- **Ethnic and Religious Minorities**
- **LGBTQIA+ Individuals**

Also there special attention on **environmental rights**.

Merits and demerits of special rights

Establishing special protections for vulnerable groups can help to publicize their issues, provide recognition for their struggles, promote equality, and ultimately prevent human rights abuses, but it can also have divisive effects. In particular, providing separate and special protection for vulnerable groups can cement perceptions of difference between the vulnerable group and others, and can lead to the marginalization of their rights.

I. Women's rights

A. Gender and human rights

A. 1 Gender related concepts

Gender

Gender refers to the socially and culturally constructed roles, responsibilities, behaviors, norms, expectations, and stereotypes that are believed to belong to women and men in a given society. These expectations and roles are learned and can change over time and vary within and between cultures.

The concept of gender is also defined as relations between men and women, both perceptual (interpretation) and material (in terms of access to resources). It is a central organizing principle of societies, and often governs the processes of production and reproduction, consumption, and distribution. Despite this definition, gender is often misunderstood as being the promotion of women only.

Gender issues focus on women and on the relationship between men and women, their roles, access to and control over resources, division of labour, interests and needs. Gender relations affect household security, family well-being, planning, production, and many other aspects of life.

Some examples of gender characteristics:

- In Viet Nam, more men than women smoke, as female smoking has not traditionally been considered appropriate.
- In Saudi Arabia men were allowed to drive cars while women were not.
- In most of the world, women do more housework than men.
- In education, more girls study social sciences subjects than sciences.

Sex

Sex refers to biological differences between men and women which are fixed, universal to human species and determined by birth. Some examples of sex characteristics:

- Women menstruate while men do not.
- Men have testicles while women do not.
- Women have developed breasts that are usually capable of lactating, while men do not have them.
- Men generally have more massive bones than women; they can also grow beards, and their voices change at puberty.
- Sex organs of men and women are different, etc.

These characteristics are determined by their biological make-up and, therefore, cannot change.

Differences between gender and sex

- **Sex** is about biology. It refers to the physical and physiological characteristics that define humans as male, female, or intersex.
- **Gender** is about social and personal identity. It refers to the social roles, behaviors, expressions, and psychological identities that a society considers appropriate for men, women, and non-binary people.

Gender roles

Gender defines certain roles that men and women play in society. Gender roles refer to a set of particular behaviors or functions reflecting masculinity or femininity. Those roles are learned from childhood and are usually influenced by culture. Gender roles are determined by the society, which assigns different responsibilities to men and women. Social norms and values define the roles men and women should play in society. Gender roles can be changed and vary over time and from community to community. E.g., cooking for women and decision-making for men.

Sex roles

Sex roles refer to what a female or male can do NOT the opposite sex. Sex roles are purely biological, natural, and God-given and do not change. For examples,

- Women give birth and breastfeed children. This is a sex role because men are not equipped to fulfill these functions. However, both men and women can take care of children. This is a gender role, as both men and women are able to do it.
- Men and women possess certain characteristics that are representative of their sex. However, both men and women can follow any career path that they

so desire, be it teachers, politicians, engineers, etc. This public role is determined by society and culture.

Patriarchy

Patriarchy may be understood as a social system in which men hold primary power and predominate in roles of political leadership, moral authority, social privilege, and control of property. It is actually associated with a set of ideas or ideology that act to explain and justify this dominance and attributes it to inherent natural differences between men and women.

Patriarchy is a form of mental, social, spiritual, economic, and political organization or structuring of society produced by the gradual institutionalization of sex-based political relations created, maintained, and reinforced by different institutions linked closely together to achieve consensus on the lesser value of women and their roles. These institutions interconnect not only with each other to strengthen the structures of domination of men over women, but also with other systems of exclusion, oppression and/or domination based on real or perceived differences between humans, creating States that respond only to the needs and interests of a few powerful.

Gender equality

UNESCO defines gender equality as a state where women and men have equal conditions for realizing their full human rights and for contributing to, and benefiting from, economic, social, cultural, and political development. To the UNESCO, gender equality is therefore, the equal valuing by society of the similarities and differences of men and women, and the roles they play in society. It is based on **women and men being full partners in their home, their community, and their society.**

Gender equality has also been defined by the European Institute for Gender Equality as the equal rights, responsibilities and opportunities of women and men and girls and boys. It stresses that equality does not mean that women and men will become the same but that women's and men's rights, responsibilities and opportunities will not depend on whether they are born male or female and implies that the interests, needs and priorities of both women and men are taken into consideration, recognizing the diversity of different groups of women and men.

Gender equality is **not a women's issue but should concern and fully engage men as well as women.** Equality between women and men is seen both as a

human rights issue and as a precondition for, and indicator of, sustainable people-centered development.

Gender equity

Gender equity is the process of being fair to men and women (treating them in a way that is right or reasonable). It basically involves putting in place measures aimed at compensating for the historical and social disadvantages that prevent women and men from operating on the same level. A typical example of a gender equity measure can be found under article 10 of the Constitution of the Republic of Rwanda which provides as one of the fundamental principles of the Rwanda State, ensuring that women occupy of at least thirty percent (30%) of positions in decision-making organs.



Gender equity is a result of gender equality. It is necessary to first achieve gender equality before trying to define what gender equitable policies and practices might look like in a society.

Work towards gender equity may include taking positive or affirmative action to ensure that policies and programs benefit women/girls and men/boys equally.

Positive or affirmative action

Affirmative action refers to a set of policies and practices within a government or organization seeking to include particular groups based on their gender, in areas in which they were excluded in the past such as education and employment. Affirmative action occurs whenever an organization devotes resources (including time and money) to making sure that people are not discriminated against based on their gender. Examples of affirmative actions in Rwanda:

- 30% of women representation in Rwandan institutions,
- Admitting girls in secondary education at a lower grade comparing to boys.

Gender mainstreaming

Gender mainstreaming consists of taking into account gender (men's and women's) problems in policies, programs, decision-making positions, project activities and budget. Men's and women's problems and skills are to be addressed with equity at the moment of designing, implementing, monitoring, and evaluating policies and programmes, at political, economic, and social levels, so as to handle men and women the same way and uproot inequalities.

It involves, in particular, making women and men's issues an integral part of the design, implementation, monitoring and evaluation of policies and programs in all political, economic, societal spheres so that women and men benefit equally. The final goal is to achieve gender equality.

Gender stereotypes

Gender stereotype refers to a generalized view or preconception (fixed idea, bias, prejudice) about attributes or characteristics or the roles that are or ought to be possessed by or performed by women and men. Examples:

- Women are dependent while men are independent.
- Women are passive while men are active.
- Women are less intelligent while men are intelligent.
- Women are careless while men are careful.
- Women are weak while men are strong.
- Women are supposed to have "clean jobs" such as secretaries, teachers, and librarians while Men do "dirty jobs" such as construction and mechanics.
- Women are supposed to cook and do housework; men do not cook and do not housework, etc.

A gender stereotype may be **harmful** when it limits women's and men's capacity to develop their personal abilities, pursue their professional careers and make choices about their lives.

Harmful stereotypes can be both **hostile** (e.g., women are irrational) or apparently **caring** (e.g., women are nurturing). For example, the fact that childcare responsibilities often fall exclusively on women is based on the latter stereotype. Another example of wrongful gender stereotype is the failure to criminalize marital rape based on societal perception of women as the sexual property of men, and the failure to effectively investigate, prosecute and sentence

sexual violence against women based on, e.g., the stereotype that women should protect themselves from sexual violence by dressing and behaving modestly.

A.2 Why is there a need for a separate rights regime addressed specifically to women

Women make up at least half of the world's population and enjoy the same basic protections as men under the international bill of human rights with all of protections against sex discrimination.

Although the universal human rights framework states that "all human beings are born free and equal," it has historically failed to address the particular and systemic ways in which women's rights are violated. This is why a separate human rights regime specifically for women is necessary.

The goal of a distinct system is to make universal human rights applicable to women, not to grant them greater rights than males. It's a remedial and strengthening action.

1. Historical Invisibility and Bias in "Universal" Rights

The "Neutral" Framework Was Male-Centric: Conventional human rights law was created mainly by men and concentrated on abuses in the public domain (such as state torture, unfair trials, and political persecution). Many of the most widespread abuses against women take place in the private realm, which is frequently disregarded (e.g., domestic violence, marital rape, unequal domestic obligations).

Women Were Not Considered to Have Complete Rights: Women had no independent legal personhood, the right to vote, the ability to own property, and access to education for centuries because of laws and social norms that considered them as the property of their fathers or husbands.

This historical prejudice is corrected by a different government that maintains that women's rights are human rights.

2. The Pervasive Nature of Gender-Based Discrimination

The subordination of women is systemic rather than coincidental. It stems from deeply rooted patriarchal social, cultural, and religious frameworks. This systemic prejudice is frequently overlooked by a gender-neutral approach. This particular type of inequality is identified and targeted by a different system.

3. Addressing "Private Sphere" Violations

Many of the most devastating human rights violations against women are perpetrated by private individuals (family members, intimate partners) rather than state actors. A separate women's rights regime:

Legitimizes these issues as serious human rights concerns.

Forces states to take responsibility for preventing, investigating, and punishing such private acts (e.g., through laws against domestic violence, sexual harassment, and female genital mutilation).

4. Recognizing Unique Vulnerabilities and Experiences

Women experience human rights violations differently due to their biology and their socially prescribed roles. A general framework often misses these nuances:

Sexual and Reproductive Rights: Issues like maternal mortality, access to contraception and safe abortion, forced pregnancy, and reproductive coercion are unique to women's bodies and are central to their autonomy, health, and life.

Gendered Impact of Conflict: Women are disproportionately targeted in war with systematic rape, sexual slavery, and forced pregnancy as weapons of war.

Economic Inequality: Women face a higher burden of unpaid care work (the "second shift"), a persistent gender pay gap, and barriers to owning land and accessing credit, which a neutral framework does not adequately address.

5. The Need for Specificity and Accountability

A separate regime creates clear, legally binding obligations. The cornerstone of this regime is CEDAW (The Convention on the Elimination of All Forms of Discrimination Against Women), often described as an international bill of rights for women.

It Defines Discrimination: CEDAW provides a comprehensive and specific definition of discrimination against women.

It Mandates Action: It requires states not just to refrain from discrimination but to take proactive measures (affirmative action) to achieve substantive equality.

It Creates a Monitoring Body: The CEDAW Committee monitors countries' progress and holds them accountable.

In general because of their historical and ongoing subordination and lack of political and economic power, women's particular needs and experiences were not taken into account in the establishment of the UN or the drafting of the international bill of human rights. The types of human rights violations that particularly affect women – including gender-based violence and economic and social marginalization – were either left out of the major international human rights covenants or relegated to a secondary status as “special interests”. As a result, feminist scholars argued that the substance of and institutions created

by international human rights institutions gave preference to male values and perspectives: human rights were men's rights.

A.3 Women's rights at the international level

Various international, regional and many other human rights treaties protect all persons (men and women; adults and children). However, there are other international and regional human rights instruments **providing special protection to women's rights as a special and vulnerable group and ensuring the actual equality with their counterpart men.**

- ✓ **The International Labour Organization (ILO)** was one of the first international organizations to support special rights for women, adopting **Convention No. 3 on Maternity Protection** and **Convention No. 4 on Night Work of Women in 1919.**

The International Labor Organization (ILO) has also continued to be active in concluding conventions for the protection of women's labour rights. These include **conventions on work by women in mines, equal pay, social security, discrimination, and family responsibilities.** Moreover, the ILO has set up a **Bureau for Gender Equality**; an International Program on More and Better Jobs for Women; and a Capacity-building Program on Gender, Poverty and Employment.

- ✓ There is **the Committee on the Status of Women (CSW) within the UN system.** The CSW has prepared numerous recommendations on urgent problems in the field of women's rights, and has developed several important declarations, proposals, and conventions that protect and promote the human rights and fundamental freedoms of women. They include:
 - The Convention on the Political Rights of Women (1952);
 - The Convention on the Nationality of Married Women (1957);
 - The Convention on Consent to Marriage, Minimum Age for Marriage, and Registration of Marriages (1962); and
 - The Recommendation on Consent to Marriage, Minimum Age for Marriage, and Registration of Marriages (1965).
- ✓ **The Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW)** is the premier international women's rights treaty. It was adopted by the UN General Assembly on 18 December 1979. CEDAW is overseen by the Committee on the Elimination of Discrimination Against Women (CEDAW Committee), which monitors and assists states in

implementing the treaty. The CEDAW Committee is empowered to monitor the human rights situation in member states, issue general recommendations interpreting CEDAW, and review state reports on “the legislative, judicial, administrative or other measures they have adopted to give effect to the provisions of the Convention.

- ✓ A number of protocols, conventions, and declarations on women’s issues have also been signed:
- Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children, supplementing the United Nations Convention against Transnational Organized Crime (2000);
- Declaration on the Elimination of Violence against Women (1994); and
- Declaration on the Protection of Women and Children in Emergencies and Armed Conflicts (1974).

Women’s rights activists successfully fought for the inclusion of “rape, sexual slavery, enforced prostitution, forced pregnancy, enforced sterilization, or any other form of sexual violence of comparable gravity” as crimes against humanity and war crimes under the 1998 Rome Statute establishing the International Criminal Court, as well as under the Statutes of the International Criminal Tribunals for Rwanda and Yugoslavia. As a result of this activism, individuals who commit sexual violence during wartime can now be held criminally responsible for their acts under international criminal law.

A.4 Women’s rights at the regional level

All of the major regional human rights systems also include special protections for the human rights of women and girls in Europe, America, and Africa.

Activity: Using various sources, learn about gender equality and women rights in Europe, America, and Africa.

B. Rwanda’s global and regional commitments in relation to gender equality and women rights

B.1. Global Commitments

Rwanda is a state party to all major international human rights instruments that promote gender equality.

1. The Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW)

Status: Ratified in 1981.

Commitment: Rwanda is legally bound to implement the provisions of CEDAW, which is the most comprehensive international bill of rights for women.

Recent Action: Rwanda submits periodic reports to the **CEDAW Committee**. Its most recent combined 6th and 7th periodic report was submitted in 2021, outlining legislative, judicial, and administrative measures taken to advance gender equality. The government actively engages with the Committee's **Concluding Observations**, using them to inform national policy.

2. The Beijing Declaration and Platform for Action (1995)

Status: A key commitment.

Commitment: Rwanda is a signatory to this landmark blueprint for advancing women's rights. It uses the 12 critical areas of concern (e.g., women in power and decision-making, women and the economy, violence against women) as a framework for its national strategies.

Recent Action: Rwanda regularly participates in the Commission on the Status of Women (CSW) and presents national reviews of its implementation of the Beijing Platform. Its reports highlight progress, particularly in political participation and economic empowerment.

3. The Sustainable Development Goals (SDGs)

Status: Fully integrated into national development planning.

Commitment: Rwanda is deeply committed to **SDG 5: "Achieve gender equality and empower all women and girls."** It also recognizes the cross-cutting nature of gender equality across all other goals.

Recent Action: The government's **National Strategy for Transformation (NST 1)** is explicitly aligned with the SDGs. Progress on SDG 5 indicators is monitored closely, with public reports showing data on women's representation, land rights, and access to education and health.

4. The Commonwealth

Status: Member since 2009.

Commitment: Rwanda champions gender equality within the Commonwealth, aligning with its core values.

Recent Action: Rwanda hosted the **CHOGM (Commonwealth Heads of Government Meeting) in 2022**, where gender equality was a central theme. The Kigali Declaration issued from CHOGM reaffirmed commitments to empowering women and girls, particularly in the context of post-COVID recovery. Rwanda also actively participates in the Commonwealth Women's Forum.

5. International Labour Organization (ILO) Conventions

Status: Ratified key gender-equality conventions.

Commitment:

C100 - Equal Remuneration Convention (1951): Ratified, committing to equal pay for work of equal value.

C111 - Discrimination (Employment and Occupation) Convention (1958): Ratified, committing to non-discrimination in the workplace.

Recent Action: These conventions are reflected in Rwanda's **Labour Law (2018)**, which prohibits gender-based discrimination in employment and provides for maternity leave.

B.2. Regional Commitments (Africa)

Rwanda's regional engagements are crucial, as they provide a context-specific framework for action.

1. The African Union (AU) and Agenda 2063

Status: A proactive and influential member.

Commitment: Rwanda is a strong advocate for the **AU's Strategy for Gender Equality & Women's Empowerment** and the related **Protocol to the African Charter on Human and Peoples' Rights on the Rights of Women in Africa (The Maputo Protocol)**.

The Maputo Protocol:

Status: Ratified in 2004.

Significance: This is one of the most progressive women's rights instruments in the world. It goes beyond CEDAW by explicitly addressing issues critical to African women, such as the right to abortion in cases of sexual assault, rape, incest, or danger to the mother's life (Article 14), and the obligation to promote gender parity in all decision-making organs (Article 9).

Recent Action: Rwanda's laws on gender-based violence, land inheritance, and political quotas are directly influenced by its obligations under the Maputo Protocol. It actively reports on its implementation to the African Commission on Human and Peoples' Rights.

2. The East African Community (EAC)

Status: A key member state.

Commitment: Rwanda is committed to implementing the **EAC Gender and Community Development Protocol** and the **EAC Strategy on Gender and Women's Empowerment**.

Recent Action: Rwanda works with partner states to harmonize policies on cross-border issues affecting women, such as trafficking, trade, and the rights

of female migrants. It champions the inclusion of women in regional trade and entrepreneurship programs.

3. The International Conference on the Great Lakes Region (ICGLR)

Status: A founding and active member.

Commitment: Rwanda is a signatory to the **ICGLR Pact on Security, Stability and Development**, which includes a specific **Protocol on the Prevention and Suppression of Sexual Violence against Women and Children**.

Recent Action: This regional commitment is critical given the history of conflict-related sexual violence in the region. Rwanda collaborates with neighboring countries to prevent and respond to sexual and gender-based violence, share best practices, and pursue transnational justice mechanisms.

B.3. How Rwanda Implements These Commitments: The Domestic Link

Rwanda's international commitments are not just symbolic; they are operationalized through a robust domestic framework:

Constitutional and Legal Quotas: The constitution mandates a **30% quota for women in all decision-making bodies**. This has resulted in over 61% of parliamentary seats being held by women, the highest in the world.

National Gender Policy: The updated National Gender Policy (2021) provides the overarching framework for all gender-related interventions across sectors.

Strong Institutions: The **Gender Monitoring Office (GMO)** is a powerful government institution tasked with ensuring all public and private institutions comply with gender equality principles.

Progressive Legislation: Laws such as the **Law on Prevention and Punishment of Gender-Based Violence (2016)**, laws governing land and succession rights, and labour laws directly translate international commitments into national law.

As conclusion, Rwanda's strategy for gender equality is an example of layered governance, in which regional and international obligations are smoothly incorporated into a powerful, locally motivated agenda. Using its own success story to promote women's rights globally, the nation is not only a passive signatory but also an active promoter and norm entrepreneur. Its ongoing emphasis is on going beyond political representation to address enduring issues of economic empowerment, altering ingrained societal norms, and making sure that advancements for women in cities also benefit those in rural areas.

C. Current state of gender equality under the laws of Rwanda

Rwanda has to comply with its obligations under various international treaties. It reformed its legal collection by removing provisions that are gender discriminatory, but also introducing new legal provisions or laws aimed at ensuring equality between men and women. In this regard, various laws from the constitution to executive orders have been amended and/or enacted.

Elimination of discrimination based on sex

The elimination of all forms of discrimination against women is established under the Constitution of the Republic of Rwanda particularly in its article 15 guaranteeing equality of all persons before the law and equal protection of the law. The Constitution also prohibits discrimination of any kind or its propaganda including discrimination based on sex. The Constitution further provides for an affirmative action where it provides that women must occupy at least 30% of positions in decision making organs. Apart from the constitution, there are various laws put in place to ensure equality of men and women in all spheres of life.

Criminalization of all gender-based discrimination and violence

The law determining offenses and penalties in general criminalizes all forms discrimination including discrimination based on sex. In terms of article 163 discrimination is punishable to imprisonment for a term of not less than five years but not more than seven years and a fine of not less than five hundred thousand Rwandan francs but not more than one million Rwandan francs. The Law Determining Offenses criminalizes other acts of violence such as sexual violence against spouse (whose victims are in most of cases women), sexual harassment and denial of the practice of family planning.

Further, to eradicate gender-based violence, Rwanda has also put in place the law on prevention and punishment of gender-based violence that criminalizes and provides penal penalties for various acts of violence based on gender.

Equality in labour matters

Equality between men and women is guaranteed under the Labour Code which imposes the obligation upon employers to **give employees equal opportunities at the workplace**. The Labour Code also prohibits the discrimination based on sex and provides for the obligation to pay employees equal salary for work of

equal value without discrimination of any kind. Men and women are provided with equal opportunities in public sector. However, there still exists such discrimination especially in private sector in labour matters, even though Rwanda achieved a lot with respect to gender equality in public sector, there is still a gap to fill within private sector especially through regular monitoring and evaluation of gender discriminatory practices. For examples, some forms of gender inequality are found when a pregnant woman is dismissed only because she is pregnant. Some institutions intentionally refuse to hire pregnant women with allegation that they will not perform as required.

The Labour Code further prohibits sexual harassment in any form. However, despite a clear prohibition of sexual harassment under the Labour Code, sexual harassment still exists at some workplaces. Examples of some men employers who need to have sex with some of their female employees. In case these accept, they are favoured but in case they refuse, they are strongly and repeatedly persecuted. This also can happen in case of some women employers toward young boys. There is another form of sexual harassment particularly in the private sector which include requiring girls and women to put on very short skirts, allowing the clients especially men to touch them, etc. Both women and men may be victims but cases of men are fewer compared to women.

The Law Determining Offenses and Penalties provides for penalties for such harassments, but there is a practical difficulty relating to the collection of relevant proofs. Further, administrative sanctions are taken for such cases. Gender related issues are also dealt with under Presidential orders implementing the Law Establishing the General Statutes of Public Services. For example, under the presidential order no 65/01 of 04/03/2014 determining modalities of imposing disciplinary sanctions to public servants' sexual harassment and gender based committed at the workplace is sanctioned by dismissal.

Further, the applicable legal framework provides for affirmative action during the recruitment process. The said affirmative action is provided for under presidential order n°144/01 of 13/04/2017 determining modalities for recruitment, appointment and nomination of public servants which provides that if two candidates obtain equal marks, the experience is taken into consideration and if they have the same experience, preference is given to a female.

In practice, gender positive discrimination was practiced in Rwanda, and this boosted gender equality between men and women especially in highest institutions of decision making. However, there is still a need for more positive

actions in favour of women especially in local government, in institutions of higher learning, and elsewhere. There is also a need for taking into account gender positive discrimination in case of work transfers. Further effort must be made to eliminate nonsensitive mind set and socio-cultural barriers to gender especially through awareness campaigns at all levels.

Equality in family and inheritance matters

Rwanda has adopted laws aiming at ensuring the equality of men and women in family and inheritance matters namely, the Law on Family and Persons and the Law on Matrimonial Regimes, Liberalities and Succession (LMLS).

The Law on Family and Persons provides for equality of both spouses by providing that spouses have the same rights and obligations and owe each other mutual fidelity, help and assistance. This Law also provides for equality of both spouses regarding the management of the household. It further provides that parental authority is vested in the father and the mother of the child.

The LMLS itself provides for equality of men and women in respect of management of family property and succession. It provides that spouses under the community of property regime manage the property together and have the same right to recover the property if taken, and act as legal representative of the property. It goes further to state that any property registered in one spouse's name is part of the property belonging to spouses under the community of property regime. Regarding equality in succession matters, the LMLS provides that legitimate children of the deceased succeed in equal portions without any discrimination between male and female children.

Equality in political life

The equality of men and women in political life of the country is dealt with in various laws. For instance, the Constitution guarantees equal participation in Government and public services where it provides that all Rwandans have the right to participate in the Government of the country, either directly or through their freely chosen representatives, in accordance with the law. It proceeds to state that all Rwandans have the right of equal access to the public service in accordance with their competence and abilities. The Constitution goes further to provide for an affirmative action, ensuring that women occupy at least thirty percent (30%) of positions in decision-making organs.

The constitutional principle of equal participation in the political life is also reflected in various laws such as **the Law on Election** which provides that any Rwandan (without discrimination) of at least eighteen years of age or who will have attained the said age on the election day is allowed to register on the voters register, and **the Law on Political Organizations** which imposes upon political organization to constantly reflect gender equality and complementarity, whether in the recruitment of members, putting in place organs of leadership and in their operations and activities.

Gender equality in education and health sector

Gender equality in education sector is dealt with under the Constitution which provides that every Rwandan has the right to education. The equality of men and women is further provided for under the Law on Education which sets out as one of its objectives the elimination of all grounds and obstacles that hinder the development of girls and women education as well as of any other groups that need special attentions. In this regard, Girls' education Policy and its strategic plan has been put in place by the Ministry of Education to ensure access, retention performance of girls and women at all levels. Emphasis has been put on girls' education in science and technologies and some affirmative action's such as lowering pass marks in national exams for female students.

In health sector, equality of men and women is guaranteed, and the existing legal framework also recognizes special conditions that are unique for women. For instance, the Constitution guarantees the right to good health for all Rwandans without discrimination. Gender equality is further reflected under the Reproductive Health Law which provides that all persons have equal rights in relation to human reproductive health and no person shall be denied such rights based on any form of discrimination. The Reproductive Health Law also provides for special care for pregnant women and the new-born.

Eradication of patriarchal tendencies

Rwandan society is traditionally patriarchal, and this tradition could affect the equality between men and women. However, legislative measures have been taken to eradicate patriarchal tendencies. For instance, in a typical patriarchal society a child cannot acquire the nationality of her mother, but in terms of the Rwandan Nationality Law, any person whose one of their parent (mother or father) is a Rwandan national shall acquires Rwandan nationality. This also applies in relation to acquisition of Rwandan nationality by marriage where any

person marriage to a Rwandan can apply for Rwandan nationality, and this applies even when the spouse holding the Rwandan nationality is the wife.

D. Gender equality and women's rights in Rwanda: achievements, challenges, perspectives

Rwanda's path is distinct, having been primarily shaped by the Tutsi Genocide of 1994. Due to the devastating death toll, which left 60–70% of the population female, women had to play a crucial part in rebuilding the country. Gender relations have undergone one of the fastest changes in history due to this practical necessity and strong political will.

1. Achievements

Rwanda's achievements are most visible in the public sphere, particularly in politics and legal frameworks.

1. Women in Political Representation (Global Leadership)

Parliamentary Supremacy: Rwanda has consistently led the world for nearly two decades in the percentage of women in parliament. As of 2024, women hold:

61.3% of seats in the Chamber of Deputies (the lower house).

Over **34%** in the Senate.

Constitutional and Legal Quotas: This achievement is anchored in the **2003 Constitution**, which mandates a quota of **at least 30%** of posts for women in all decision-making organs. This includes all levels of government, from village councils to the national parliament.

High-Level Posts: Women hold key ministerial positions (e.g., Foreign Affairs, Health, National Unity and Civic Engagement) and head major institutions like the Supreme Court and the Rwanda Development Board.

2. Progressive Legal and Policy Framework

Landmark Legislation: Rwanda has enacted a series of progressive laws:

2003 Constitution: Explicitly guarantees gender equality and outlaws gender discrimination.

Law on Prevention and Punishment of Gender-Based Violence (2016): A comprehensive law that criminalizes domestic violence, marital rape, and sexual harassment, with strong penalties.

Law on Matrimonial Regimes, Liberalities, and Successions (1999, revised 2016): Grants women equal rights to inherit and own land and property, a revolutionary change in a traditionally patriarchal society.

Strong Institutions: The **Gender Monitoring Office (GMO)** is a powerful, dedicated government body tasked with ensuring all public and private institutions comply with gender equality principles. The **National Women's Council** structures extend from the national to the village level, ensuring a channel for women's voices.

3. Socio-Economic Advancements

Education: Gender parity has been achieved in primary and secondary school enrollment. The focus has now shifted to retaining girls in school and encouraging them to pursue STEM (Science, Technology, Engineering, and Mathematics) fields.

Health: Significant reductions in maternal mortality, increased access to family planning, and near-universal health insurance coverage have improved women's health outcomes.

Financial Inclusion: Programs like *Girinka* (one cow per poor family) and access to credit through the *Umurenge* SACCOs (Savings and Credit Cooperatives) have targeted women for economic empowerment.

2. Key challenges and critical gaps

Despite the impressive achievements, significant hurdles remain, particularly in the private sphere and socio-economic equity.

1. The Gap Between De Jure and De Facto Reality

Land and Inheritance: While the law grants women equal land rights, customary practices often prevail. Male family members may pressure widows or daughters to relinquish their inherited land, and women may lack the knowledge or power to claim their legal rights.

GBV and Social Norms: Despite strong laws, **Gender-Based Violence (GBV)** remains widespread. A 2020 DHS survey indicated that about **40% of ever-married women aged 15-49** have experienced physical or sexual violence from an intimate partner. Deeply ingrained social norms that tolerate domestic violence as a "private matter" and emphasize female submission are slow to change.

2. Economic Empowerment vs. Unpaid Care Work

The "Second Shift": Women's high participation in the formal economy and politics has not been matched by a redistribution of domestic responsibilities. Women still bear the brunt of unpaid care work (childcare, cooking, fetching water/firewood), limiting their time for rest, education, and income-generating activities.

Informal Sector and Vulnerable Employment: The majority of women work in the informal sector or in subsistence agriculture, characterized by job insecurity, low pay, and a lack of social protection.

Glass Ceiling in Private Sector: While women dominate the political sphere, they are severely underrepresented in senior leadership and board positions in the private sector.

3. Political Representation vs. Political Power

"Quantity" vs. "Quality" of Power: Critics argue that while the quota system has brought many women into office, it does not automatically translate into transformative power. Some women parliamentarians may feel pressured to conform to the ruling party's line rather than advocate for a distinct feminist agenda.

Limited Space for Critical Feminist Movements: The strong, state-led model of gender equality can sometimes crowd out independent feminist civil society organizations that might critique government policies more openly.

II. Children's rights

A. Children as a vulnerable group

Article 1 of the United Nations Convention on the Rights of the Child defines a child as "any *human being below the age of eighteen years 'unless', under the law applicable to the child, majority is attained earlier*" (United Nations, 1989).

Since children are still developing physically, cognitively, emotionally, and socially, they are widely acknowledged as a vulnerable population. They are more vulnerable to abuse, exploitation, and neglect than adults due to their innate need. Their vulnerability is a structural fact resulting from their stage of human development rather than a psychological shortcoming.

Why Children are Considered a Vulnerable Group?

Dependency: Children rely on adults for their basic survival needs—food, shelter, protection, and emotional care. This dependency creates a power imbalance that can be easily exploited.

Developmental Stage: Their brains and bodies are still developing. Exposure to trauma, malnutrition, or violence can have permanent, lifelong consequences on their physical health, mental capacity, and emotional well-being.

Limited Agency: Children have limited legal capacity and social power to make decisions, advocate for themselves, or escape harmful situations.

Silenced Voices: In many societies, children are not consulted or heard in matters that affect them. Their opinions are often dismissed, making it difficult to identify and address abuses they face.

B. Theories on child's rights

Choice or will theory of rights

Choice or will theory sees a right as the protected exercise of choice. In other words, to have a right is to have the power to enforce the duty of which the right is the correlative i.e., Children's (lack of) ability to choose, to claim or exercise their rights (choice or will theory of rights), liberty rights (based on choice). It means that the right holder must have the ability to demand the fulfilment of the obligation connected with their right or the ability to give up this right. Rights are thus powers that enable the right holder to use them in a way that they consider appropriate. This freedom is a strong element of this theory, that there cannot exist rights, which cannot be waived. According to the will theory:

- Rights are protected choices.
- Only those capable of exercising choices can be right holders.
- Children are incapable of exercising choice.
- Children are not right-holders.

Welfare or Interest theory of rights

According to the interest theory, the function of rights is to protect the interests or well-being of their holders. It sees a right as the protection of an interest of sufficient importance to impose on others certain duties whose discharge allows the right-holder to enjoy the interest in question. Children's interests in need of protection as a justification for their rights (interest theory of rights) – welfare rights (interest to be protected). According to the interest theory:

- Adults have duties to protect important interests of children.

- Rights and duties are correlative.
- Children are right holders.

C. Children's rights at the global level

Different international treaties mention children rights in several different contexts:

- **The Universal Declaration of Human Rights (UDHR):** Article 25 (1): Everyone has the right to a standard of living adequate for the health and wellbeing of himself and of his family, including food, clothing, housing and medical care and necessary social services, and the right to security in the event of unemployment, sickness, disability, widowhood, old age or other lack of livelihood in circumstances beyond his control. Article 25(2): Motherhood and childhood are entitled to special care and assistance. All children, whether born in or out of wedlock, shall enjoy the same social protection. Article 26 (3): Parents have a prior right to choose the kind of education that shall be given to their children.
- **The International Covenant on Civil and Political Rights (ICCPR):** Article 10 (2) (b), and (3), 14 (1) and (4), 18 (4), 23 (4), and 24 (1), 24 (2) Every child shall be **registered** immediately after birth and shall **have a name**, and 24 (3) Every child has the right to acquire a **nationality**.
- **The International Covenant on Economic, Social and Cultural Rights (ICESCR):** Article 10 (1), 10 (3) Special measures of protection and assistance should be taken on behalf of all children and young persons without any discrimination for reasons of parentage or other conditions..... , 12 (2) (a) The provision for the reduction of the stillbirth-rate and of infant mortality and for the healthy development of the child, and 13 (3) The States Parties to the present Covenant undertake to have respect for the liberty of parents and, when applicable, legal guardians to choose for their children schools, other than those established by the public authorities, which conform to such minimum educational standards as may be laid down or approved by the State and to ensure the religious and moral education of their children in conformity with their own convictions.
- **Convention on Elimination of all forms of Discrimination Against Women (CEDAW):** Article 5 (b), 9(1) (2) States Parties shall **grant women equal rights with men with respect to the nationality of their children** and 16(1) (d) (e) (f), (2) The **betrothal** [an agreement that two people will be married in the future] and the **marriage of a child** shall have no legal effect, and all necessary action, including legislation, shall be taken to specify a

minimum age for marriage and to make the registration of marriages in an official registry compulsory.

- **International Convention on the Protection of the Rights of All Migrant Workers and Members of their Families:** article 12 (4): ... respect for the liberty of parents, at least one of whom is a migrant worker, and, when applicable, legal guardians to ensure the **religious and moral education of their children in conformity with their own convictions**, article 17 (6): Whenever **a migrant worker is deprived of his or her liberty**, the competent authorities of the State concerned shall pay attention to the problems that may be posed for members of his or her family, in particular for spouses and **minor children**, article 29: “Each child of a migrant worker shall have the right to a name, to registration of birth and to a nationality, article 30: “**Each child of a migrant worker** shall have the basic right of access to education on the **basis of equality of treatment** with nationals of the State concerned., article 44 (2): States Parties shall take measures that they deem appropriate and that fall within their competence to **facilitate the reunification of migrant workers** with their spouses or persons who have with the migrant worker a relationship that, according to applicable law, produces effects equivalent to marriage, as well as with **their minor dependent unmarried children**. Article 45 (2): States of employment shall pursue a policy, where appropriate in collaboration with the States of origin, aimed at **facilitating the integration of children of migrant workers in the local school system**, particularly in respect of **teaching them the local language**; (3) States of employment shall endeavour to facilitate for the children of migrant workers **the teaching of their mother tongue and culture** and, in this regard, States of origin shall collaborate whenever appropriate; (4) States of employment may provide special schemes of *education in the mother tongue of children of migrant workers*, if necessary in collaboration with the States of origin.
- **Convention on the Rights of Persons with Disabilities: Children with disabilities** **Preamble** – (r) Recognizing that children with disabilities should have full enjoyment of all human rights and fundamental freedoms on an equal basis with other children, and recalling obligations to that end undertaken by States Parties to the Convention on the Rights of the Child; **Article 3 (General Principles):** The principles of the present Convention shall be:.....(h) Respect for the **evolving capacities of children with disabilities** and respect for the right of children with disabilities to **preserve their identities**. **Article 7: Children with disabilities (1)** States Parties shall take all necessary measures to ensure the **full enjoyment by children with**

disabilities of all human rights and fundamental freedoms on an equal basis with other children; (2) In all actions concerning children with disabilities, **the best interests of the child** shall be a primary consideration; (3) States Parties shall ensure that children with disabilities have the right **to express their views freely** on all matters affecting them, their views being given due weight in accordance with their age and maturity, on an equal basis with other children, and to be provided with disability and age-appropriate assistance to realize that right. [Article 16](#): Freedom from exploitation, violence and abuse. [Article 18](#): Liberty of movement and nationality. [Article 23](#): Respect for home and the family. [Article 24](#): Education ...” Ensure that the education of persons, and in particular children, who are blind, deaf or deafblind, is delivered in the most appropriate languages and modes and means of communication for the individual, and in environments which maximize academic and social development”. [Article 25](#): Health. [Article 30](#): Participation in cultural life, recreation, leisure, and sport.

- **International Convention for the Protection of All Persons from Enforced Disappearance:** [Article 25](#) (1): Each State Party shall take the necessary **measures to prevent and punish** under its criminal law: (a) The wrongful **removal of children who are subjected to enforced disappearance**, children whose father, mother or legal guardian is subjected to enforced disappearance or children born during the captivity of a mother subjected to enforced disappearance; (b) The falsification, concealment or destruction of **documents attesting to the true identity of the children** referred to in subparagraph (a) above. 2. Each State Party shall take the necessary measures to **search for and identify the children** referred to in paragraph 1 (a) of this article and to **return them to their families of origin**, in accordance with legal procedures and applicable international agreements. 3. States Parties shall assist one another in searching for, identifying and locating the children referred to in paragraph 1 (a) of this article. [Article 25\(4\)](#) Given the need to protect **the best interests of the children** referred to in paragraph 1 (a) of this article and their right to preserve, or to have re-established, **their identity**, including their nationality, name and family relations as recognized by law, States Parties which recognize a system of adoption or other form of placement of children shall have legal procedures in place to review **the adoption or placement procedure, and, where appropriate, to annul any adoption or placement of children** that originated in an enforced disappearance. (5) In all cases, and in particular in all matters relating to this article, the best interests of the child shall be a primary consideration, and a **child who is capable of forming his or her**

own views shall have the right to express those views freely, the views of the child being given due weight in accordance with the age and maturity of the child.

- **Convention on the Rights of the Child (CRC):** Adopted in 1989, the CRC contains a profound idea *that children are not just objects who belong to their parents and for whom decisions are made, or adults in training*. Children are rather *human beings and individuals with their own rights*. The Convention says childhood is separate from adulthood, and lasts until 18; it is a special, protected time, in which children must be allowed to grow, learn, play, develop and flourish with dignity. **The CRC specifically addresses children and protects them as separate, autonomous beings. It reformulates many civil, political, economic, social, and cultural rights that focus on the special needs of children.** The Convention became the most widely ratified human rights treaty in history and has helped transform children's lives.

The CRC has inspired states parties to change laws and policies and make investments so that more children finally get the *health care* and *nutrition* they need to *survive* and *develop*, and there are stronger safeguards in place to *protect* children from *violence* and *exploitation*. It has also enabled more children to have their *voices heard* and *participate* in their societies. Despite this progress, the CRC is not yet fully implemented or widely known, and thus, children continue to suffer violations of their rights when they are denied *adequate health care, nutrition, education, and protection from violence*. *Childhoods* continue to be cut short when children are forced to *leave school, do hazardous work, get married, fight in wars* or are *locked up in adult prisons*.

The rights afforded to children by UN Convention on the Rights of the Child (CRC) are generally divided into four general categories of rights:

- **Survival rights:** including the right to adequate living standards, and access to health services.
- **Developmental rights:** including the right to an education, access to information, recreation, cultural activities, and freedom of thought, conscience, and religion.
- **Protection rights:** including the right to protection against economic exploitation, sexual exploitation, cruelty, arbitrary separation of children from families, and abuses in the justice system; and
- **Participation rights:** including the child's right to be involved in decisions on critical issues.

Additional protection and support are granted to children who have been **separated from their parents, have been victims of abuse or exploitation, are refugees, or have any kind of disability.**

Other instruments dealing with child rights:

- Convention on Protection of Children and Co-operation in Respect of Intercountry Adoption (Concluded 29 May 1993)
- United Nations Standard Minimum Rules for the Administration of Juvenile Justice ("The Beijing Rules") - Adopted by General Assembly resolution 40/33 of 29 November 1985
<http://www.ohchr.org/Documents/ProfessionalInterest/beijingrules.pdf>.

Activity: Download each of the above-mentioned conventions and read carefully each article related to child rights but specifically, read the CRC to learn more about children rights in its different articles.

D. Child's rights enforcement mechanisms

The CRC created a treaty body – **the Committee on the Rights of the Child** (CRC Committee) – to oversee the implementation of the Convention. In 2000, the UN General Assembly adopted **two Optional Protocols** to the Convention: The first concerns **the recruitment and involvement of children in armed conflicts**. The second is **the Optional Protocol on the Sale of Children, Child Prostitution and Child Pornography**. Under the second Optional Protocol, State parties must ensure that the sale of children, child prostitution, and child pornography are criminalized both within and outside of their territories. It also requires states to either prosecute or extradite any offenders found within their borders, and establishes extensive enforcement jurisdiction, allowing State Parties to prosecute persons who violate these laws whenever the offense was committed in the state's territory, by a national of the state, or against a victim who is a national of the state. The Optional Protocol also requires the confiscation of materials and assets that were involved in crimes against children and allows for protective measures to be taken on behalf of victims.

There are also special procedures: Special Rapporteur on the sale of children, child prostitution and child pornography– 1990. Special Rapporteur on trafficking in persons, especially women and children – 2004. Individual complaints possible since April 2014 (entry into force of a 19th December 2011 protocol of communications procedure).

The United Nations Children's Fund (UNICEF) remains one of the key global organizations concerned with children's rights. It is tasked with improving the lives of children across the globe. UNICEF does advocacy work, provides technical support and assistance to national governments, and is one of the world's primary vaccine suppliers.

Several other international organizations also have programs related to children's rights, and some of these provide even greater protection than is mandated by the CRC. **The ILO**, for example, has implemented strict rules on working conditions for children as part of the fight to eliminate child labor. **The Geneva Conventions** also provide some standards of protection that are higher than those outlined in the CRC. For example, while the CRC forbids the recruitment or use in hostilities of children under the age of 15, Protocol I to the Geneva Conventions of 1949 extends the period of extra protection to children between the ages of 15 and 17.

E. Children's rights at the regional level

Each of the major regional systems provides further protections for the rights of children in Europe, America, and Africa. For more information, you can visit different sources including electronic sources.

F. Child Rights in the Rwandan Laws

- Rwanda's ratification of international human rights instruments on children's rights (see <http://indicators.ohchr.org/> -UN Office of High Commissioner for Human Rights).
- Constitutional provisions relevant to child's rights:
 - **Article 18: Protection of the family:** The family, being the natural foundation of the Rwandan society, is protected by the State. **Both parents have the right and responsibility to raise their children.** The State puts in place appropriate legislation and organs for the protection of the family, particularly the child and mother, in order to ensure that the family flourishes.
 - **Article 19: Child's right to protection:** Every child has the right to specific mechanisms of protection by his or her family, other Rwandans, and the State, depending on his or her age and living conditions, as provided for by national and international law.
 - **Article 20 Right to education:** Every Rwandan has the right to education. Freedom of learning and teaching is guaranteed in accordance with

conditions determined by law. **Primary education is compulsory and free in public schools.**

- **Child Rights in other Rwandan Laws:**

- Family law: **Article 10:** Civil rights of a conceived child, **Article 38:** Right to have a name, **Article 39:** Prohibited names, Effects of Marriage – Child-related duties, Relationship Between Parents and Children
- Succession law
- Criminal law and criminal procedure
- Administrative law

- **Rwanda's Child Law: Law No. 71/2018 of 31/08/2018** relating to the **protection** of the child. The law provides special rights for children, and those rights are similar to those found in the UN and African regional treaties. But it has some peculiarities. The law also contains **measures for the protection of children, including penal sanctions**. It applies to all children living in Rwanda. Children's special rights include: **right to early adequate development; equality of children** (non-discrimination – special protection accorded to children living with disabilities should not be seen as discrimination); **medical insurance and be taken to medical facility for treatment; access to information, rest and leisure** (compatible with a child's age and within the limits of parents/state); **freedom of thought, expression, conscience and religion** (as advised and guided by parents/guardians); **freedom of association** (as advised and guided by parents/guardians).

Activity: Download from google the **Law No. 71/2018 of 31/08/2018** relating to the protection of the child. Read it to get knowledge and understanding of different child rights in Rwanda.

Key Government Institutions (The "Executors")

These are the state bodies responsible for implementing the laws and policies.

4. Ministry of Gender and Family Promotion (MIGEPROF):

Primary Role: The **lead government ministry** for child rights. It is responsible for policy formulation, coordination, and monitoring of all child-related programs.

Key Functions: Oversees the National Child Development Agency, leads campaigns against child abuse, and promotes family strengthening.

5. National Commission for Children (NCC):

Role: An independent national institution established by the Child Protection Law. It serves as an ombudsman for children.

Key Functions: Monitors the implementation of child rights, receives and investigates complaints, advocates for children, and produces reports on the state of child rights in Rwanda.

6. National Child Development Agency (NCDA):

Role: An agency under MIGEPROF, acting as the **operational arm** for child protection.

Key Functions: Manages childcare and protection services, oversees the foster care system, coordinates responses for vulnerable children, and works on the elimination of child labor.

7. Ministry of Education (MINEDUC):

Role: Responsible for fulfilling the child's right to education.

Key Functions: Implements the 12-Year Basic Education (12YBE) program, promotes girls' education, and integrates child rights and protection into the school curriculum.

8. Ministry of Health (MoH):

Role: Responsible for the child's right to health.

Key Functions: Manages the Community-Based Health Insurance (Mutuelle de Santé), runs vaccination programs, and provides maternal and child health services.

9. Rwanda National Police (RNP) - Child and Family Protection Unit:

Role: A specialized unit crucial for enforcement.

Key Functions: Investigates cases of child abuse, violence, and exploitation; works on prevention programs in communities and schools.

10. National Public Prosecution Authority (NPPA):

Role: Prosecutes crimes against children. Has specialized prosecutors for sexual and gender-based violence crimes, which often involve child victims.

G. Child Online Protection

Rationale

Rwanda is among the countries with fast-growing ICT development on the continent and across all sectors. Internet penetration in Rwanda currently stands at over 52.1% from 7 % in 2011, and phone penetration has grown to over 80.6 % currently from 33% in 2010. The rapid growth of internet and phone penetration inevitably comes with general risks to children related to cyber bullying, online sexual exploitation, child trafficking, radicalization, blackmail, and sexting. Over 45 % of Rwanda's population is under 18, according to UNICEF. The changing nature of the digital environment requires specific action to protect children.

Typology of online risks

There are 4 categories (The 4Cs):

- **Content risks:** where children are exposed to harmful material (e.g., pornography, racist/hate speeches, violence).
- **Contact risks:** where children are involved in usually adult initiated online activity (e.g., grooming, stalking, sexual exploitation).
- **Conduct risks:** where children are victims or perpetrators in peer-to-peer exchanges (e.g., bullying, revenge porn).
- **Commercial risks:** where children are exposed to inappropriate advertising, marketing schemes, fraud, and scams.

Harms to children

The experience of harm changes from child to child on the basis of factors including but not limited to gender, age, family circumstances, socio economic status, and experiences and availability digital technology.

Harms include among others: lack of confidence, Loss of confidence, isolation, sleeplessness, over-exposure and over-sharing, stress, anxiety, depression, family conflict, diminished empathy, poor fine motor skills, opportunity cost” diminished memory concentration and ability to focus/engage, obesity, self-harm, radicalisation, suicide/suicidal ideation, discrimination, misogyny, reputational damage, sexual exploitation, fear of violence, sexual assault, addiction/compulsion, emotional difficulties/distress, behavioural difficulties/distress, financial loss, permissive and unrealistic sexual attitudes, gender-stereotypical sexual attitudes, maladaptive attitudes to relationships, susceptibility to advertising, self-exclusion/self-editing, unrealistic body image/pressure to conform to narrow body image, aggression, etc.

The ranking of risk incidence:

1. Providing personal information to strangers (50%)
2. Seeing adult pornography online (40%)
3. Seeing violent or hateful content (30%)
4. Meeting an online contact (10%)

Factors that may increase the likelihood of risk exposure

- ✓ Sex: More girls than boys are victims of cyberbullying.
- ✓ Race: Black children may be more likely than children of other races to be victims.
- ✓ Lack of self-control as main predictor of cyberbullying.

- ✓ Chat rooms and social media.
- ✓ Unstable residential areas.
- ✓ Being a victim of cyberbullying (bully-victims);
- ✓ Frequency of mobile phone use, the extent of attachment to mobile phones, spending more time online, sharing mobile phones, and accessing digital devices in a private place.

Keeping children safer in cyberspace

Role of parents

Some useful tips to closely in monitoring children's online activities

- ✓ Place computers in a common area of the house
- ✓ Learn more about computers and the internet.
- ✓ Spend time online with your kids.
- ✓ Set reasonable time and usage limits
- ✓ Discuss the dangers of the web with your child
- ✓ Keep the youngsters out of online chat rooms, and do your best to reinforce the old rule, "never talk to strangers."
- ✓ No personal information given out, and no "face-to-face" meetings
- ✓ NEVER let your child upload or download photos without your permission
- ✓ Check with your Internet Service Provider for any parental controls, blocking and filtering tools they may offer
- ✓ "Friend" or "Follow" Your Child on Social Networks
- ✓ Consider contacting school authorities in case you suspect harmful online activity at school

Role of schools

- ✓ Introducing formal child safeguarding policies and procedures in schools, as well as COP (Child Online Protections), and the need to introduce COP lessons into the school curriculum alongside sex education lessons.
- ✓ COP awareness in schools should incorporate digital literacy and encourage children to use the internet in positive ways, i.e., ensuring the positive use of technology and creating a scaffolding for acquiring digital skills

- ✓ Alongside raising awareness in schools, software should automatically be installed on computers in schools to prevent students from accessing or being exposed to harmful content.
- ✓ All schools should also develop standardized COP school policies and procedures.

Role of states

- ✓ Formulate COP policies
- ✓ Enact and update data protection laws
- ✓ Strengthen and enforce laws that prohibit COP-related offences.
- ✓ Introduce data protection regulations, ensuring that children's data is protected appropriately, collected only where necessary with the high levels of security and care
- ✓ Strengthen criminal investigation, prosecution and sentencing for online child sexual abuse
- ✓ Identify and ratify COP-related international treaties & protocols
- ✓ Monitor the COP by institutions that receive children

Role of internet service providers

- ✓ Introduce corporate responsibility standards
- ✓ Implement safety, rights by design
- ✓ Application of age-rating classification
- ✓ Introduce flagging systems
- ✓ Ensure protection of children from commercial pressures
- ✓ Internet surveillance

Rwanda Child Online Protection Policy

Introduced in July 2019

https://minict.gov.rw/fileadmin/Documents/Policies2019/COP_Policy_Update_d.pdf.

- ✓ The policy stipulates that businesses are required to show procedures and special considerations undertaken to ensure child safety and respect for children's rights as they extend their online services into Rwanda.
- ✓ It also requires service providers to put in place mechanisms to identify and report upsetting or unsuitable content by having transparent and robust monitoring systems for all online services.

- ✓ The policy also states that if internet service providers, communication service providers, entertainment, and media industry, who are the concerned parties in the case, fail to abide by the policy, they shall be blocked.
- ✓ The government would establish high level data protection, having specific provisions for children with world-class reporting and takedown mechanisms.
- ✓ The takedown procedures shall apply to Internet service providers, communication service providers, entertainment and media industry, and deliberate effort shall be made to conduct surveillance of internet to detect content that is harmful to children.
- ✓ Access to host websites that fail to take down notified harmful or risk content would be legally blocked.
- ✓ The policy does not include any technical supervision or regulations yet.
- ✓ Public awareness campaign is needed for this specific policy.

III. The rights of persons with disabilities

Persons with disabilities as a vulnerable group

Persons with disabilities have long suffered from discriminatory and harmful treatment at the hands of society. Persons with disabilities were considered less than human and denied their basic rights. Persons with disabilities have been the victims of genocide, eugenics, and discrimination. Even when not subject to such gross abuses, they have suffered forced institutionalization, denial of legal capacity, and immobilization by barriers in the social, educational, and built environments. They have been denied the right to bear and rear children, to marry, to inherit, to access insurance or loans, and to own property. They have been segregated in education, housing, and employment. To make matters worse, “these abuses remain hidden, normalized through widespread assumptions that conflate disability with inability, even incompetence.”

The rights of persons with disabilities at the global level

Although persons with disabilities are entitled to all of the human rights and fundamental freedoms protected by the international bill of human rights, disability was not specifically mentioned anywhere in the ICCPR or ICESCR. Nor does it appear in CEDAW, the Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (CAT), the International Convention on the Protection of All Migrant Workers and their Families (ICRMW),

or the International Convention on the Elimination of All Forms of Racial Discrimination (CERD). The UDHR mentions disability only once – in the context of receiving social security. The CRC is the only one of the “core” human rights treaties that includes specific protections for persons with disabilities in article 2 and article 23.

The Convention on the Rights of Persons with Disabilities (CRPD) and its Optional Protocol were unanimously adopted on December 13, 2006, and opened for signature on March 30, 2007. The CRPD entered into force on May 3, 2008.

The goal of the CRPD is “to promote, protect and ensure the full and equal enjoyment of all human rights and fundamental freedoms by all persons with disabilities, and to promote respect for their inherent dignity.” It defines persons with disabilities as “*those who have long-term physical, mental, intellectual or sensory impairments which in interaction with various barriers may hinder their full and effective participation in society on an equal basis with others.*”

The CRPD protects key rights such as the rights to make decisions, to marry, to have a family, to work, and to education. It articulates several additional rights that are specific to persons with disabilities. These include rights to “full and effective participation and inclusion in society”, and to “autonomy”, including the right to “personal mobility”, “accessibility”, and the “right to live independently.

The CRPD restates the application of existing human rights to persons with disabilities, reaffirming that disabled persons are entitled to civil, political, economic, social, and cultural human rights, and have the right to enjoy them “on an equal basis with others.” The CRPD is overseen by a Committee on the Rights of Persons with Disabilities (CRPD Committee) that can review periodic state reports, and issue general comments and recommendations. An Optional Protocol to the CRPD establishes an individual complaints mechanism and inquiry procedure for state parties.

In addition to the CRPD and the other instruments adopted through the GA, several other intergovernmental organizations have been involved in the protection of persons with disabilities. The International Labour Organization (ILO) has been active in the area of disability and work, promoting the inclusion and employability of persons with disabilities. The United Nations Educational, Scientific and Cultural Organization (UNESCO) has been active in highlighting the educational needs of disabled persons. Finally, the World Health

Organization (WHO) has focused on disability from the perspective of prevention and rehabilitation.

At the regional level, Europe, Americas, Africa and Asia have also adopted a number of instruments specifically addressing the situation of persons with disabilities.

IV. The rights of minorities (ethnic, religious, and linguistic minorities)

Ethnic, religious, and linguistic uniformity in a country is today the exception, rather than the rule. Of the world's more than 191 officially designated states, at least 175 are "multi-ethnic", meaning that minority groups make up more than 5 per cent of their population. While many countries may have a culturally homogenous majority population, nearly all have national, ethnic, linguistic, and religious minorities as well.

There is no universally accepted definition of a "minority" in international human rights law. This may be because minorities live in such a wide variety of situations: they may live together in well-defined and separate areas, or they may be scattered throughout one or more nations; they may have a strong sense of group identity and a well-defined history and culture; or they may have only a fragmented knowledge of their common heritage. The Special Rapporteur on Prevention of Discrimination and Protection of Minorities, Mr. Francesco Capotorti, proposed the following working definition in a 1979 report:

A group numerically inferior to the rest of the population of a State and in a non-dominant position, whose members ... possess ethnic, religious or linguistic characteristics differing from those of the rest of the population and show, if only implicitly, a sense of solidarity, directed towards preserving their culture, traditions, religion or language.

But it should be noted that while non-dominant minority groups are considered "vulnerable" for the purposes of human rights, not all minorities are subject to oppression. Minority groups may hold a variety of social, economic, and political positions within a society; may have happy or hostile relations with the majority and other minority groups; and may be well integrated, rejected by the majority, or resistant to assimilation. Differences among majority and various minority groups may be dramatic. Minorities may even be economically or politically dominant within a society, as was the case with the white minority in apartheid South Africa.

Why special rights to minorities?

Minorities in general have disproportionately been the targets of xenophobia, racism, aggressive nationalism, economic and political discrimination, anti-Semitism, religious fanaticism, and other forms of intolerance and oppression. Ethnic and religious difficulties have led to civil and international war and violations of the peace and are therefore matters of heightened global concern. The recent tragedies of Rwanda, the former Yugoslavia, and Sudan also illustrate these problems.

Protection of minority rights at the global level

The 1948 UDHR makes no mention of minority rights but does prohibit discrimination based on “race, color, language, religion, national or social origin ... or other status.” The Convention on the Prevention and Punishment of the Crime of Genocide (the Genocide Convention), signed the same year, likewise makes no specific mention of “minorities”, but provides protection against acts intended “to destroy, in whole or in part, a national, ethnical, racial or religious group.” And the 1966 International Convention on the Elimination of All Forms of Racial Discrimination (CERD), the second of the core UN human rights treaties to be adopted by the General Assembly, prohibits discrimination of any kind in the political, economic, social, and cultural or any other field of public life.

For several decades, the ICCPR Article 27 was the primary global document for protecting minority rights. In 1992, the United Nations General Assembly adopted the Declaration on the Rights of Persons Belonging to National or Ethnic, Religious or Linguistic Minorities. Though non-binding, the Declaration on the Rights of Minorities, as it is more commonly known, specifically protects minorities’ right to their identities and stresses the importance equality. It declares that minorities have the right to enjoy their own culture, practice their own religion, and use their own language; as well as to participate in cultural, religious, social, economic, and public life; to participate in decisions at the national and regional level; and to associate with other members of their own and other minority groups.

In addition, a Working Group on Minorities, which has since substantive 2007 been transformed into the Forum on Minority Issues, was established in 1995 to oversee the implementation of the Declaration. And in 2005, the High Commissioner for Human Rights appointed an Independent Expert on Minority Issues to provide advice on minority concerns. UN Specialized Agencies like the

ILO and UNESCO have also contributed to protecting the right to work and the cultural artifacts of minority groups.

Protection of minority rights at the regional level

Europe is the only region that has developed specific additional protections for the rights of minorities. The European Charter of Human Rights, adopted in 1950, expressly prohibits discrimination based on “association with a national minority.” The Organization for Security and Cooperation in Europe (OSCE) has been active in the protection of minorities. A number of recommendations on issues related to the protection of minorities have also been issued. Most prominently, the OSCE established a High Commissioner on National Minorities in 1992. The work of the High Commissioner, who gives recommendations and reports on the status of minority populations in OSCE Member States, has been significant for the protection of minority rights in the past decade.

Within the Council of Europe, the 1992 European Charter for Regional and Minority Languages and the 1995 Framework Convention for the Protection of National Minorities are the two human rights documents addressed to minority communities. The latter document is particularly important, as it is legally binding and imposes enforceable obligations on Member States.

The Commonwealth of Independent States and the Central European Initiative have also produced nonbinding documents protecting the rights of minorities, particularly referencing the plight of the Roma people.

V. Indigenous peoples’ rights

As with ethnic, religious, and linguistic minorities, there is no generally accepted definition of “indigenous peoples” in international law. In an influential 1986 report, UN Special Rapporteur José Martínez Cabo developed what has become the generally accepted working definition of indigenous peoples:

Indigenous communities, peoples and nations are those which, having a historical continuity with pre-invasion and pre-colonial societies that developed on their territories, consider themselves distinct from other sectors of the societies now prevailing on those territories, or parts of them. They form at present non-dominant sectors of society and are determined to preserve, develop and transmit to future generations their ancestral territories, and their ethnic identity, as the basis of their continued existence as peoples, in accordance with their own cultural patterns, social institutions and legal systems.

Indigenous persons are entitled to protection as minorities under ICCPR Article 27. However, some indigenous peoples reject being classified as minorities as it obscures the long-term, geographically based, and colonially tied nature of their claims and dilutes their unique position in international law.

Indigenous peoples as a vulnerable group

Indigenous peoples are considered a “vulnerable group” under international human rights law. Their vulnerable status results from a long history of discrimination that has led to an inequitable distribution of social and material conditions between indigenous and non-indigenous persons.

Indigenous rights at the global level

The International Labour Organization (**ILO**) was one of the pioneers in protecting the rights of indigenous persons at the international level with its **Convention No. 169**. As a result of ongoing indigenous organizing and advocacy at the global level, the issue of indigenous peoples’ rights was finally planted on the agenda of the UN in the 1990s. In recognition of this growing international attention to indigenous peoples’ rights, the General Assembly declared 1995–2004 the International Decade of the World’s Indigenous People, and a Second Decade of the World’s Indigenous People from 2005–2015.

In 2007, the UN GA adopted the most important global document on the rights of indigenous peoples: **the Declaration on the Rights of Indigenous Peoples**. It protects indigenous life, integrity, and security. It addresses genocide, the education of indigenous children, and the military use of indigenous land. It includes a variety of land rights, such as the right to engage in traditional activities, control over natural resources, and the right to develop and manage indigenous lands. It also addresses concerns about intellectual property and redress for past injustices.

The Declaration explicitly recognizes the right to self-determination, the right to autonomy or self-government, and the right to be free of genocide and the forcible removal of children in addition to individual rights. The protection of indigenous peoples’ right to self-determination is considered by many to be the cornerstone of the Declaration, without which the other rights it protects would not be effective. Like ethnic, linguistic, and religious minorities, indigenous peoples enjoy hybrid rights, such as the prohibition of forced assimilation, that are held by individuals but apply only in the context of the group.

The Declaration on the Rights of Indigenous Peoples is a *Declaration*, not a *Convention*, and therefore contains no legal enforcement mechanisms. However, it emphasizes the “urgent need to respect and promote the inherent rights of indigenous peoples”.

International human rights law protects both the individual and collective rights of indigenous peoples. Indigenous peoples’ rights can be generally divided into five categories:

- **Non-discrimination:** ensuring the equal treatment of indigenous individuals and groups.
- **Cultural integrity:** protecting linguistic, religious, cultural, and other aspects of indigenous society.
- **Social welfare and development:** promoting economic development for indigenous peoples.
- **Lands and natural resources:** protecting the physical environment in which indigenous peoples live, both ecologically and by protecting their land tenure; and
- **Self-government:** the right to make autonomous political choices.

In addition to ILO Convention No. 169 and the UN Declaration on the Rights of Indigenous Peoples, **several other agreements and institutions** protect the rights of indigenous peoples at the global level.

A Permanent Forum on Indigenous Issues (PFII) has been established under ECOSOC to provide information and raise awareness on indigenous people’s rights. The Permanent Forum has issued a number of recommendations in its six mandated areas of concern: Economic and social development; Culture; Environment; Education; Health; and Human rights.

A UN Voluntary Fund for Indigenous Populations, created in 1985, provides financial assistance to representatives of indigenous communities and organizations for the purpose of attending and participating in UN discussions on indigenous issues.

An Expert Mechanism on the Rights of Indigenous Peoples provides thematic assistance on Indigenous issues to the Human Rights Council. In addition to these permanent agencies, the Human Rights Council oversees a **Special Rapporteur** on the situation of human rights and fundamental freedoms of

indigenous people, as well as an Expert Mechanism on the Rights of Indigenous Peoples, both of which play a role in promoting and implementing the Declaration.

A number of the other international human rights treaties also specifically address indigenous persons. **The CRC** protects the rights of indigenous children to culture, religion, and language. **The CEDAW Committee** noted the special circumstances faced by indigenous women in General Recommendation No. 24 on women and health. **The Human Rights Committee** has favoured an interpretation of Article 27 that includes strong indigenous land rights. And **the Committee on Economic, Social and Cultural Rights' General Comment 14** recognizes the right of indigenous peoples to control their own health and medical care.

A number of international environmental agreements have also paid special attention to the needs of indigenous peoples. **The Rio Declaration, Agenda 21, the Convention on Biological Diversity, and others** all make particular mention of indigenous peoples, their connection with tribal lands, the value of traditional knowledge, and the need to protect the environment that sustains them.

Indigenous rights at the regional level

At the regional level, the Inter-American Commission and Court have been particularly active in protecting the rights of indigenous peoples. The African system has also expanded its protection of indigenous rights. The African Commission on Human and Peoples' Rights established a Working Group on indigenous peoples/communities in 2002.

VI. Protection of refugees

Refugees as a vulnerable group

Population displacement is a phenomenon that has grown in both size and complexity since the 20th century. People may be forced to leave their homes for a variety of reasons: due to war or armed conflict; disease; lack of basic necessities; persecution; natural disaster; economic hardship; or any

combination thereof. Some of these displaced people move across international borders, others travel to a new location within their home state. All of these people face difficulties as a result of their displacement. But only some are *refugees*.

Refugees are granted special protection under international law. Historically, this was because when a refugee fled her/his state of origin, she/he either lost or was unable or unwilling to invoke the protection of her/his government. When a person is classified as having refugee status, this identity becomes the key that unlocks all of the benefits and special protections available under international law.

History of the refugee rights

The protection of refugees was an early target of international human rights and humanitarian law. The League of Nations launched several programs for assisting and repatriating refugees following World War I. It established a High Commissioner for Russian Refugees in 1921 to support refugees in the wake of the Soviet revolution. In 1933, the League appointed a High Commissioner for Refugees coming from Germany, who helped find permanent homes – many in Palestine – for refugees fleeing Hitler's Reich. Finally, in 1938 the League established a High Commissioner for Refugees and Intergovernmental Committee on Refugees initially concerned with forced emigration from Germany and Austria, and later with all refugee groups in Europe during the Second World War.

During World War II, some 1.2 million people were dislodged from their homes. Large numbers fled across national borders seeking shelter from the war in safer territories. The protection and resettlement of these refugees was one of the immediate concerns of the newly formed United Nations.

In 1947, the UN founded the International Refugee Organization (IRO), the first international agency to deal comprehensively with the protection of refugees. The right to seek and enjoy asylum was included as Article 14 of the UDHR. When the IRO fell out of favour, in 1950 the GA established the Office of the United Nations High Commissioner for Refugees (UNHCR) to provide, on a non-political and humanitarian basis, international protection to refugees and to seek permanent solutions for their repatriation or resettlement.

The 1951 Refugee Convention

In addition to establishing UNHCR, governments adopted the Refugee Convention in 1951. Today, the Refugee Convention is the most comprehensive international legal document providing protection for refugees.

Who is a Refugee?

Under the 1951 Refugee Convention and its 1967 Protocol, a refugee is someone who:

- Has a well-founded fear of persecution because of his or her race; religion; nationality; membership in a particular social group; or political opinion;
- Is outside his or her country of origin or habitual residence; and
- Because of fear of persecution, is unable or unwilling to seek the protection of that country or to return there.

Under this definition, *all three* criteria must all be met for a person to qualify as a refugee. The most important protection under the Refugee Convention is **the obligation of non-refoulement** (“not to send back”). This principle forbids states from returning a refugee to a territory in which her life or freedom would be in danger as a result of her membership in a protected class. Non-refoulement does not require a country to grant asylum to all persons seeking entry, but it does mean that if a country refuses asylum to a group of refugees, it must send the refugees to another safe destination and not back to a country in which they may suffer harm. It is generally accepted that non-refoulement has become a part of customary international law, so all states are required to respect this principle even if they are not party to the Refugee Convention or the CAT.

Certain groups can be denied the protection of the Refugee Convention if they fall under one of the exclusion clauses. According to Article 1(f), refugee status under the Convention does not apply if there are “serious reasons” for believing that the asylum-seeker has committed one of the following crimes:

- Crimes against peace, war crimes, or crimes against humanity;
- Serious non-political crimes; or
- Acts contrary to the purposes and principles of the United Nations.

Additionally, the Refugee Convention’s protections only apply during a limited period of time. According to the Convention’s “cessation clauses”, a person ceases to be a protected refugee if she:

- Voluntarily re-avails herself of the protection of the country of nationality;
- Voluntarily reacquires her lost nationality;
- Acquires a new nationality and the protection of a new country;
- Voluntarily re-establishes herself in the country which she previously fled due to fear of prosecution; or

- The circumstances that caused the person to become a refugee have ceased to exist.

The UNHCR – an independent UN specialized agency, not a treaty body – is charged of monitoring the implementation of the Refugee Convention and its 1967 Protocol. Unlike in many other treaties we have studied, there is no periodic reporting requirement in the Refugee Convention, and no individual complaints procedure has been established. However, the Convention and Protocol do oblige states to submit information to the UNHCR regarding the status of refugees and national progress on implementation.

Refugee rights at the global level

Today, UNHCR is one of the largest and most important humanitarian agencies in the UN system. It has become a primary player in safeguarding the rights and well-being of refugees. UNHCR continues to monitor implementation of the Refugee Convention and related aspects of international refugee law. It also provides basic services such as food, water, and shelter to persons caught in humanitarian emergencies, and it provides protection and assistance to a wide array of “persons of concern” other than refugees, including:

- **Returnees:** former refugees who have returned to their homeland.
- **Internally displaced persons (IDPs):** those who were forced to flee their homes but have not crossed international border; and
- **Stateless persons:** those who have no nationality or are of disputed nationality.

Refugee rights at the regional level

In the European system, Article 3 of the European Convention on Human Rights prohibits refoulement. The European states are in the process of implementing a Common European Asylum System, and the European institutions have been fairly active in ensuring the protection of refugees and asylum seekers.

In the African system, the African Charter on Human and Peoples’ Rights recognizes the right “to seek and obtain asylum in other countries.” The Organization of African Unity (OAU) has adopted the 1969 Convention Governing the Specific Aspects of Refugee Problems in Africa.

In the Inter-American system, the American Declaration of the Rights and Duties of Man establishes that “Every person has the right, in case of pursuit

not resulting from ordinary crimes, to seek and receive asylum in foreign territory, in accordance with the laws of each country and with international agreements". The American Convention on Human Rights recognizes the "right to seek and be granted asylum" and prohibits refoulement.

In addition, certain Asian, Middle Eastern, and African states adopted the Bangkok Principles on the Status and Treatment of Refugees in 1966. The principles, updated in 2001, also include a broader definition of "refugee".

VII. **Environmental rights**

Environmental rights are a category of rights that encompass both:

Substantive Rights: The human right to a clean, healthy, and sustainable environment.

Procedural Rights: The access rights that enable the protection of the environment, namely: **Access to Information, Public Participation, and Access to Justice.**

These rights are increasingly recognized as essential for the fulfillment of other human rights, such as the rights to life, health, water, and food.

1. Legal Foundations and References

Environmental rights are enshrined in a layered framework of international, regional, and national laws.

A. International Law

While no universal treaty explicitly grants a standalone "right to a healthy environment," the foundation is solidly built through key declarations, principles, and interpretations.

Stockholm Declaration (1972): The cornerstone document.

Principle 1: *"Man has the fundamental right to freedom, equality and adequate conditions of life, in an environment of a quality that permits a life of dignity and well-being..."*

Rio Declaration (1992): Established the key procedural rights.

Principle 10: Stresses that environmental issues are best handled with public participation, and that states should facilitate access to information and justice.

UN Human Rights System:

UN Resolution 76/300 (2022): A landmark resolution where the UN General Assembly formally **recognized the human right to a clean, healthy and**

sustainable environment. This is a powerful political declaration, though not legally binding like a treaty.

CESCR General Comment No. 14 (2000): On the right to health, explicitly notes that the underlying determinants of health include a "healthy environment."

John H. Knox (UN Special Rapporteur on Human Rights and the Environment): His reports were instrumental in framing the **Framework Principles on Human Rights and the Environment (2018)**, which outline 16 state obligations.

Key Global Agreements (Indirect Support):

Paris Agreement (2015): Preamble notes the obligation of states to respect, promote and consider their human rights obligations when taking climate action.

Convention on Access to Information, Public Participation and Access to Justice (Aarhus Convention, 1998): A pivotal regional (Europe) treaty that is the gold standard for procedural environmental rights.

B. Regional Frameworks

Many regional human rights systems have explicitly recognized the right to a healthy environment.

African Charter on Human and Peoples' Rights (Banjul Charter):

Article 24: *"All peoples shall have the right to a general satisfactory environment favourable to their development."*

Reference Case: Social and Economic Rights Action Center (SERAC) v.

Nigeria (2001). The African Commission on Human and Peoples' Rights held that the Nigerian government violated Article 24 by failing to protect the Ogoni people from environmental degradation caused by oil companies. This case cemented the justiciability of this right.

American Convention on Human Rights:

Additional Protocol of San Salvador (1988): Article 11 explicitly recognizes the right to a healthy environment.

European Convention on Human Rights:

While it contains no explicit right, the **European Court of Human Rights (ECtHR)** has protected environmental rights through other articles, such as **Article 8 (Right to Private and Family Life)** and **Article 2 (Right to Life)**.

Reference Case: López Ostra v. Spain (1994). The Court found that severe pollution from a waste treatment plant near the applicant's home violated her right to respect for her private and family life under Article 8.

C. National Law

Rwanda has positioned itself as a global leader in environmental policy and sustainability. The right to a clean and healthy environment

is **constitutionally enshrined**, supported by a robust legal framework, and actively promoted through ambitious national strategies. However, as a developing nation with high population density, it faces significant challenges in balancing rapid economic growth with environmental protection and ensuring that these rights are equitably enjoyed by all citizens, especially the most vulnerable.

1. Legal and Constitutional Foundation

Rwanda's commitment to environmental rights is rooted in its supreme law and elaborated in detailed legislation.

The Constitution of the Republic of Rwanda (2005, revised in 2015):

Article 49: This is the cornerstone. It explicitly states that *"Every person has the right to a clean and healthy environment."*

Article 52: It further imposes a **duty on every citizen** to protect, safeguard, and promote the environment.

This combination of a justiciable right and a correlative duty creates a powerful foundation for environmental governance.

Law N° 48/2018 of 13/08/2018 on Environment (The Principle Framework Law):

This law operationalizes the constitutional right. It provides comprehensive provisions for environmental management, protection, and the responsibilities of different stakeholders.

It incorporates key principles like **Polluter Pays, Precautionary Principle, and Environmental Impact Assessment (EIA)**.

Other Relevant Laws:

Law N° 17/2019: Governing the East African Community Climate Change Policy.

Law N° 16/2021: Governing Biodiversity in Rwanda.

Law N° 04/2023: Governing the Preservation of Water Resources.

Various Ministerial Instructions and Orders that provide detailed regulations on waste management, air quality, and pollution control.

2. Key Institutions and Their Roles

A multi-institutional framework is responsible for upholding environmental rights.

Ministry of Environment (MoE): The lead government institution responsible for policy formulation, planning, monitoring, and coordination of all environmental matters.

Rwanda Environment Management Authority (REMA): The operational arm of the MoE. Key functions include:

Enforcing environmental laws and standards.

Conducting and reviewing Environmental Impact Assessments (EIAs).

Monitoring environmental quality (air, water, soil).

Leading public awareness campaigns.

Rwanda Green Fund (FONERWA): A groundbreaking fund dedicated to financing public and private sector green projects that foster climate resilience and a green economy.

Ministry of Justice and Rwanda National Police: Enforce environmental laws and prosecute violators.

Local Government (Districts & Sectors): Critical for implementing national policies at the grassroots level, including managing forests, wetlands, and waste collection.

3. Implementation Mechanisms

Rwanda has several active mechanisms to give effect to environmental rights.

A. Procedural Rights (Access to Information, Participation, and Justice)

Access to Information: REMA and other institutions regularly publish state of the environment reports and data. The EIA process mandates the disclosure of project information to the public.

Public Participation: The EIA process legally requires public hearings for certain categories of projects, allowing communities to voice concerns about developments that may affect their environment and health.

Access to Justice:

Citizens and NGOs can report environmental violations to REMA or local authorities.

The Rwanda Investigation Bureau (RIB) and National Police have environment and protection units.

Courts can and do hear environmental cases. For example, there have been prosecutions for illegal mining, wetland degradation, and poaching.

B. National Policies and Flagship Programs

These demonstrate the proactive approach to securing the right to a healthy environment.

Vision 2050 & National Strategy for Transformation (NST1): Both place a green economy and environmental sustainability at the core of Rwanda's development path.

Green Growth and Climate Resilience Strategy (GGCRS): The overarching framework for all climate and environment actions.

Umuganda: The monthly community work includes environmental activities like tree planting, cleaning up public spaces, and terracing to fight soil erosion. This fosters a collective sense of responsibility.

Ban on Single-Use Plastics (2008): A pioneering and strictly enforced policy that has significantly reduced plastic pollution.

Forest Landscape Restoration Ambition: Part of the AFR100 initiative, aiming to restore 2 million hectares of degraded land by 2030.

Despite impressive progress, significant challenges

4. Current Challenges and Criticisms

remain in fully realizing environmental rights for all.

Enforcement Gaps: While laws are strong, enforcement can be inconsistent, particularly against powerful political or economic interests. Corruption at local levels can sometimes undermine enforcement.

Trade-offs with Development: Rapid urbanization and industrial development (e.g., new factories, mining concessions) sometimes lead to conflicts, such as the relocation of people living in high-risk zones or the degradation of wetlands for construction.

Impact on Vulnerable Groups: Strict environmental laws, while well-intentioned, can have disproportionate impacts. The most cited example is the 2016 Kigali Master Plan enforcement, which led to the relocation of residents from high-risk and wetland zones, sometimes with disputes over adequate compensation. This raises issues of environmental justice.

Limited Access to Justice: While legally possible, pursuing environmental lawsuits can be costly and complex for ordinary citizens, limiting the practical use of the courts to uphold their rights.

Pollution: Air pollution in urban areas, especially Kigali, is a growing concern. Water pollution from agricultural runoff and inadequate wastewater treatment in some areas also persists.

1.2. Human rights and peacebuilding

The way that peacebuilding is understood now has completely changed. It is now viewed as the existence of just, inclusive, and resilient society (positive peace) rather than only the absence of war (negative peace). Human rights are the cornerstone and goal of this type of lasting peace, not a distinct agenda. Human rights abuses are frequently the primary drivers of conflict, and resolving these abuses is crucial to averting future hostilities and establishing enduring peace.

1.2.1. Peacebuilding

The Norwegian sociologist Johan Galtung first created the term peace building in the 1970s, through his promotion of systems that would create sustainable peace. Peacebuilding is defined as an action to solidify peace and avoid relapse into conflict (Boutros Boutros-Ghali, *An Agenda for Peace* (1992) by addressing the roots causes of the conflict. It is a push for core transformations that enable

post-conflict societies to move towards sustainable peace. It involves a range of measures targeted to reduce the risk of lapsing or relapsing into conflict by strengthening national capacities at all levels for conflict management, and to lay the foundations for sustainable peace and development. This involves addressing both drivers and legacies of conflict and the promotion of both social justice and cohesion, solidarity, by addressing injustices and bringing people and communities together.

Theoretical framework for peace building: Four dimensions of sustainable peace building: 4Rs

Redistribution: concerns equity and non-discrimination in accessing services (e.g., education), resources, and outcomes for different groups in society, particularly marginalized and disadvantaged groups. Key word: addressing inequalities and inequities.

Recognition: concerns respect for and affirmation of diversity and identities in different structures, processes in terms of gender, language, politics, religion, ethnicity, culture, and ability. Key word: respecting difference; recognizing different identities, voices and needs.

Representation: concerns participation, at all levels of society's systems, in governance and decision-making related to the allocation, use, and distribution of human, financial and material resources. Key word: Inclusive participation in decision making.

Reconciliation involves dealing with past events, injustices, and the material and psychosocial effects of conflict, as well as developing relationships and trust. Key word: dealing with injustices and legacies of conflict; addressing past human rights abuses or other forms of severe trauma.

Other key elements of peace building at the national level include demilitarization, control of small arms, institutional reform, improved police, and judicial systems, monitoring of human rights, electoral reform, social and economic development. The objectives of post-conflict peace building at the national level are creation or strengthening of national institutions, monitoring of elections, promotion of human rights, provision of reintegration and rehabilitation programs and the creation of conditions for resumed development.

International mechanisms of peace building: Peace keeping, Peace support operations, humanitarian, and development interventions

There is a range of activities undertaken by the United Nations to maintain international peace and security throughout the world: conflict prevention, peacekeeping, peacemaking, peace enforcement, humanitarian, and development assistance. They are mutually reinforcing. If they are used in

isolation, they fail to address the root causes of conflict and hence reduce the risk of conflict recurring.

1. Conflict prevention

Conflict prevention refers to approaches, methods and mechanisms used to avoid, minimize, and/or contain potential violent conflicts; and in post-conflict environments, to prevent violent conflict from re-emerging. As defined by the United Nations, conflict prevention involves diplomatic measures to keep intra-state or inter-state tensions and disputes from escalating into violent conflict. It includes early warning, information gathering and a careful analysis of the factors driving the conflict. Conflict prevention activities may include the use of the Secretary-General's "good offices," preventive deployment of UN missions or conflict mediation led by the Department of Political Affairs.

2. Peacemaking

Peacemaking generally includes measures to address conflicts in progress and usually involves diplomatic action to bring hostile parties to a negotiated agreement. According to the UN, peacemaking is **action to bring hostile parties to agreement, essentially through peaceful means**. It is the diplomatic effort intended to move a violent conflict into nonviolent dialogue, where differences are settled through representative political institutions. The objective of peacemaking is to end the violence between the opposing parties.

Peacemaking can be done through negotiation, mediation, conciliation, and arbitration or international courts. The UN Secretary-General may exercise his or her "good offices" to facilitate the resolution of the conflict. Peacemakers may also be envoys, governments, groups of states, regional organizations, or the United Nations. Peacemaking efforts may also be undertaken by unofficial and non-governmental groups, or by a prominent personality working independently.

3. Peace enforcement

Peace enforcement involves the application of a range of coercive measures, including the use of military force. It requires the explicit authorization of the UN Security Council. It is used to restore international peace and security in situations where the UN Security Council has decided to act in the face of a threat to the peace, break of the peace or act of aggression. The Council may utilize, where appropriate, regional organizations and agencies for enforcement action under its authority and in accordance with the UN Charter.

4. Peacekeeping

Peacekeeping is defined as “an operation involving military personnel, police component and a civilian component, but without enforcement powers, undertaken by the United Nations to help maintain or restore international peace and security in areas of conflict”. Peacekeeping is a function of the UN, but there are occasions when it is used by international and regional organizations.

The Security Council approves the deployment of a UN peacekeeping operation, then UN peacekeepers (formed military and police units, observers, and advisers) are deployed to support national security actors in establishing the safety and security needed for peacebuilding to get underway. The mandates of peacekeeping operations include many peacebuilding tasks, including disarmament, demobilization, and reintegration (DDR), security sector reform (SSR), support to electoral processes and re-establishing governmental authority.

Local mechanisms of peacebuilding

Local mechanisms of peacebuilding include disarmament, demobilization and reintegration and rebuilding governmental, economic, and civil society institutions. They also have to do with: Security; Socioeconomic recovery; media, communication, and civic education; traditional justice and reconciliation; heritage and cultural preservation.

- **Security:** Community-based policing is an approach that brings together the police, civil society, and local communities to jointly take responsibility for and develop solutions to local safety and security.
- **Socioeconomic recovery:** Community-based approaches have been adopted to provide for services (health and education, in particular), infrastructure, natural resource and environmental management, livelihoods and employment generation – for example through the formation of cooperatives. Many of these initiatives have been designed and implemented with particular attention to fostering social capital, cooperation across divides, and the foundation for reintegration and reconciliatory processes. Examples: Girinka, VUP (Ubudehe), Vision 2020, EDPRS 1 and 2, National Strategies for Transformation (NST1&2) and Vision 2050.
- **Media, communication, and civic education:** Community-based radio stations and other forms of media broadcasting in multiple languages, seek

to promote dialogue and debate on key issues in society; to promote reconciliatory processes and civic education. Community video units are another form of participatory communication, whereby people present their own ideas on key issues. Local videographers seek to promote social change by documenting the views and concerns of different groups in society such that they can learn about each other. Theatre productions and puppet shows, designed, and conducted by communities, have also been used for outreach education – to teach peaceful dispute resolution and human rights norms and values. Examples: Musekweya radio show, *Ingando*, *Itorero*, *urugerero*.

- **Traditional justice and reconciliation:** often focus on the psycho-social and spiritual dimensions of violent conflicts. Traditional approaches are also often inclusive, with the aim of reintegrating parties on both sides of the conflict into the community. An important component is public cleansing ceremonies, undertaken is an integral step in healing community relationships.

1.2.2. Intertwining of Human Rights and Peacebuilding

A. Human Rights as a Root Cause of Conflict

Grievance and Inequality: Systematic discrimination, marginalization of ethnic or religious groups, denial of political participation, and economic inequality create deep-seated grievances that can fuel conflict.

Impunity: When states fail to hold perpetrators of human rights abuses accountable, it erodes trust in institutions and can lead to cycles of revenge violence.

Shrinking Civic Space: Restrictions on freedom of expression, assembly, and association prevent peaceful dialogue and choke off legitimate avenues for addressing grievances.

B. Human Rights as a Goal of Peacebuilding

Positive Peace: The ultimate goal of peacebuilding is a society where all individuals can live in dignity, free from fear and want. This is the very definition of a society that respects, protects, and fulfills human rights.

The "Sustaining Peace" Agenda: Adopted by the UN in 2016, this agenda emphasizes that peacebuilding is not a sequential process (first security, then institutions) but a holistic one that must address the root causes of conflict and be owned by the entire society, based on respect for all human rights.

C. The "Rights-Based Approach to Peacebuilding"

This operational framework integrates human rights principles into all peacebuilding activities:

Participation: Affected populations, including women, youth, and marginalized groups, must be active agents in designing and implementing peace processes, not passive beneficiaries.

Accountability and Rule of Law: Building legitimate institutions (police, judiciary) that are accountable to the people and protect their rights.

Non-Discrimination and Equality: Actively ensuring that peace agreements and new institutions do not perpetuate old patterns of exclusion.

Empowerment: Providing people with the knowledge, skills, and resources to claim their rights and hold power-holders accountable.

E. Present Difficulties and Criticisms

The integration of human rights and peacebuilding is not without its difficulties:

- **The "Stability vs. Justice" Dilemma:** Often, peace negotiators face pressure to grant amnesties to powerful warlords or former leaders to secure a peace deal, which directly contradicts the demand for justice and accountability.
- **Shrinking Civic Space:** A global trend of authoritarianism is making it harder for civil society to operate, undermining a key actor in both human rights and peacebuilding.
- **Local Ownership vs. International Standards:** Tension can arise between international human rights norms and local cultural or traditional practices. Imposing external values can be counterproductive; the goal is to find contextualized, locally-led solutions that still uphold universal principles.
- **Funding and Political Will:** Human rights work is often underfunded in peacebuilding budgets, which tend to prioritize security. Long-term, patient work on justice and inclusion often loses out to short-term security demands.
- **Digital Threats:** The use of digital surveillance to target activists and the spread of online disinformation to fuel hatred are new, evolving challenges.

F. The Future Path: A Comprehensive, Prevention-Centered Method

The current consensus points towards:

1. **Conflict Prevention:** The most cost-effective and humane approach. This involves robust human rights monitoring as an early warning system and acting on those warnings through diplomatic and development channels *before* violence erupts.
2. **Localization:** Shifting power and resources to local peacebuilders and human rights defenders who understand the context best.

3. **Adapting to New Conflict Drivers:** Addressing human rights issues related to **climate change** (e.g., climate-induced displacement, resource scarcity) and **digital governance** as emerging drivers of conflict.
4. **Data and Technology for Good:** Using data analytics to map human rights violations and conflict risks, while ethically managing the dangers.

Conclusion

Human rights and peacebuilding have an operational relationship that is no longer up for debate. Without human rights, there can be no lasting peace, and without peace, human rights cannot be upheld. The current paradigm needs a comprehensive strategy that goes beyond signing ceasefire agreements to the more difficult, long-term task of creating inclusive communities, responsible institutions, and a culture of justice and respect for each person's dignity. There is no other way to achieve peace that is permanent.

1.3. Pan Africanism and human rights in Africa

Two strong, related ideas that have influenced post-colonial Africa are pan-Africanism and today's human rights framework. Although their paths have not always been exactly in line, they both have the same basic objectives of freedom, dignity, and self-determination. In its political form, pan-Africanism has frequently placed a higher priority on collective freedom and state sovereignty, sometimes at the price of individual human rights. Today, balancing these two forces is crucial to the development of a united, powerful Africa that maintains the fundamental freedoms and rights of all African citizens.

1.3.1. The Historical Foundations: Common Roots in Freedom

African human rights consciousness and contemporary Pan-Africanism have its roots in the fight against racism, slavery, and colonialism.

A. Pan-Africanism: Liberation from Outside Discrimination

Early Diaspora-Focused Ideology: Early Pan-Africanism, which was led by individuals like George Padmore, Marcus Garvey, and W.E.B. Du Bois, was centered on the solidarity of all people of African origin worldwide. Ending colonial domination, fostering a common African identity, and defending the right to self-determination were its main objectives.

The Shift to the Continent: Leaders such as Patrice Lumumba (Congo), Julius Nyerere (Tanzania), and Kwame Nkrumah (Ghana) embraced and Africanized

the movement. Political liberty was the first step for them. In order to stop the balkanization and ongoing exploitation of the continent, political and economic union was the ultimate objective. This goal was institutionally realized in 1963 with the establishment of the Organization of African Unity (OAU).

B. African Human Rights: A Joint Effort

In the beginning, the idea of "human rights" in Africa was identical with the group's right to freedom from colonial powers. The battle was characterized by the egregious human rights violations of colonialism, which included forced labor, land confiscation, racial discrimination, and political enslavement. The focus was on external self-determination (freeing the nation from foreign rule) rather than internal self-determination (the right of citizens to participate in their own governance).

1.3.2. The Post-Colonial Divide: Individual Rights vs. Sovereignty

Following the 1960s independence wave, a crucial conflict arose between the political objective of Pan-Africanism and citizens' individual human rights.

The key principle of the OAU was "sovereign equality and non-interference in the internal affairs of States." This was essential to preventing boundary disputes and preserving unity among newly formed, vulnerable states.

The Shield for Repression: This principle became a shield for a new generation of African leaders who became autocrats. They could violate the rights of their citizens with impunity, as criticism from neighboring states was seen as a breach of Pan-African solidarity. Leaders like Mobutu Sese Seko (Zaire), Idi Amin (Uganda), and Macias Nguema (Equatorial Guinea) committed massive human rights abuses under the protection of this doctrine.

This was crucial for maintaining unity among new, fragile states and preventing border conflicts.

The One-Party State: A number of Pan-Africanism's founders contended that multi-party democracy was a Western invention that promoted ethnic strife. In the sake of national progress and togetherness, they created one-party regimes that routinely repressed freedom of expression, assembly, and political criticism.

1.3.3.The Convergent Path: African System Institutionalization of Human Rights

By the 1980s, internal pressure from pro-democracy movements and the catastrophic effects of human rights violations compelled a reevaluation. Human rights were formally incorporated into the Pan-African project.

A. The African Charter on Human and Peoples' Rights (1981) - The Banjul Charter

This is the cornerstone of the African human rights system and represents a unique synthesis of Pan-African and universal human rights ideals.

"Peoples' Rights": It is unique for emphasizing collective or "peoples' rights" alongside individual rights. These include: A. The Banjul Charter, the African Charter on Human and Peoples' Rights (1981)

This is the cornerstone of the African human rights system and is a special combination of global and Pan-African human rights principles.

"Peoples' Rights": It is distinct in that it emphasizes both individual and collective rights, or "peoples' rights." Among them are:

- **The right to self-determination.**
- **The right to economic, social, and cultural development.**
- **The right to a satisfactory environment.**
- **The right to national and international peace and security.**

Emphasis on Duties: The Charter also highlights the duties of the individual towards their family, society, and the state, reflecting African communitarian philosophies (Ubuntu).

Three Generations of Rights: It seamlessly combines civil and political rights (1st generation), economic, social, and cultural rights (2nd generation), and group rights (3rd generation).

B. The Transition from the OAU to the African Union (AU) - 2002

This was a paradigm shift, marking the most significant effort to align Pan-Africanism with human rights and good governance.

From Non-Interference to Non-Indifference: The AU's Constitutive Act explicitly provides for the "right of the Union to intervene in a Member State

pursuant to a decision of the Assembly in respect of grave circumstances, namely: war crimes, genocide, and crimes against humanity." This is the revolutionary principle of "Non-Indifference."

Promotion of Democratic Norms: The AU has established frameworks to reject unconstitutional changes of government (coups d'état) and has suspended member states following military takeovers.

Key Institutions:

- **African Commission on Human and Peoples' Rights (ACHPR):** Monitors the implementation of the African Charter.
- **African Court on Human and Peoples' Rights:** Issues binding judgments on human rights violations. (Note: Its authority is not recognized by all AU members, and its access by individuals and NGOs is limited).
- **The African Peer Review Mechanism (APRM):** A voluntary self-monitoring mechanism to promote good governance among member states.

1.3.4. Current Information and Contemporary Dynamics

The interplay between Pan-Africanism and human rights today is multifaceted and active.

A. Positive Integration and Advocacy

The "Agenda 2063": The AU's strategic framework for the continent's transformation explicitly links Pan-African prosperity with good governance and human rights. It envisions an "Africa of good governance, democracy, respect for human rights, justice, and the rule of law."

Silencing the Guns Initiative: A flagship AU project aimed at ending all wars, genocide, and human rights violations on the continent by 2030. It directly connects peace (a core Pan-African goal) with the protection of human rights.

Vibrant Civil Society: A powerful, Pan-African civil society network (e.g., the Pan-African Lawyers Union, AfricTivists) uses the continental frameworks to advocate for rights, monitor elections, and challenge authoritarian regimes, embodying a grassroots Pan-Africanism focused on citizen welfare.

B. Persistent Challenges and Tensions

The Sovereignty Shield Endures: Despite "Non-Indifference," the principle of sovereignty remains powerful. The AU has often been hesitant to forcefully intervene in major crises (e.g., the conflict in Tigray, Ethiopia; the persistent crisis in the DRC) due to political divisions and respect for state sovereignty.

Democratic Backsliding: There is a resurgence of military coups (e.g., Mali, Burkina Faso, Guinea, Niger, Gabon) and the rise of "constitutional coups" where leaders manipulate constitutions to extend their terms. This directly undermines both democratic rights and the AU's own anti-coup norms.

Resource-Driven Conflicts and Corruption: The plunder of natural resources by elites, often in collusion with multinational corporations, fuels conflict and leads to massive human rights abuses (e.g., in the Niger Delta, Eastern DRC). This violates the "peoples' right" to resources and development.

Marginalization and Identity-Based Violence: Severe human rights violations against specific groups (e.g., the Rohingya, Tigrayans, Pygmies, various ethnic groups in Nigeria's Middle Belt) show that the Pan-African ideal of unity has not erased deep-seated ethnic and religious prejudices.

The Migration Crisis: The horrific treatment of African migrants in North Africa (especially in Libya) and the struggles of migrants within the continent highlight the gap between the Pan-African ideal of free movement and the reality of xenophobia and state brutality.

1.3.5. Key Case Studies in the Current Landscape

- **The Sahel Crisis:** A nexus of jihadist insurgencies, military juntas, and weak governance. The juntas have justified their coups by citing the state's failure to protect human rights (security), yet they themselves often commit abuses. This presents a complex challenge for the AU's principles.
- **Ethiopia (Tigray War):** A devastating civil war within a major Pan-African state, involving widespread atrocities. The AU's mediation role was crucial but also demonstrated the limitations of its intervention capacity in a powerful member state.
- **Rwanda:** Often cited as a model for Pan-African leadership and economic development, yet it faces significant criticism for political repression and restrictions on freedom of expression, illustrating the ongoing tension between development and civil liberties.

Conclusion: An Unfinished Project

In Africa, the relationship between human rights and pan-Africanism is still developing. The fundamental principles are similar: they both want to give Africans independence, prosperity, and dignity.

Prioritizing state sovereignty over individual rights has left a lasting effect. The development of the African human rights system and the institutional transition from the OAU to the AU, however, demonstrate a distinct, albeit flawed, path toward integration.

The ability of African institutions, governments, and—above all—civil society to hold the Pan-African initiative responsible to its citizens will determine the future of this partnership. True Pan-Africanism must be based on the concrete defense of every African citizen's human rights, from the right to life and security to the right to freely engage in the political and economic life of the continent. It cannot be attained only through political declarations or economic integration.

1.4. Human rights, democracy and the rule of law: a peacebuilding perspective

From the standpoint of peacebuilding, human rights, democracy, and the rule of law are fundamental elements of sustainable peace itself, not distinct ideas to be pursued after peace is attained. Conflict is primarily caused by violations of these principles, and their development builds a strong, equitable, and inclusive society that can resolve conflicts peacefully. This triangle is the foundation of the modern concept of "positive peace"—a just and long-lasting peace, not just the absence of conflict.

1.4.1. The Interdependent Triangle as the Conceptual Framework

Think of these three concepts as three legs of a stool supporting a peaceful society. If one is weak, the entire structure is unstable.

- **Human Rights:** The **ethical foundation and ultimate goal**. They define the inherent dignity and entitlements of every individual.
- **Democracy:** The **political process**. It provides the mechanisms for inclusive participation, legitimate decision-making, and peaceful political competition.

- **Rule of Law: The operational framework.** It ensures that power is exercised predictably, fairly, and accountable to laws that protect rights, rather than the arbitrary will of the powerful.

When these three are strong, they create a **virtuous cycle** that prevents conflict and consolidates peace.

1.4.2.The Negative Cycle: How Conflict Is Caused by Their Absence

Violent conflict is rarely spontaneous. It is typically born from a prolonged negative cycle:

1. **Human Rights Violations as Root Causes:** Systematic discrimination, political repression, lack of access to justice, and economic marginalization of specific groups create deep-seated grievances.
2. **Democratic Deficits:** When citizens have no peaceful avenues to change their government, influence decisions, or express dissent (i.e., no functioning democracy), grievance turns to frustration.
3. **Breakdown of the Rule of Law:** A corrupt and politicized judiciary, unaccountable security forces, and impunity for elites signal that peaceful redress is impossible. This is the final trigger, making violence seem like the only remaining option.

Example: The pre-genocide period in Rwanda featured all three elements: state-sponsored discrimination and propaganda (human rights violations), a one-party state excluding the Tutsi minority (democratic deficit), and a judiciary that allowed impunity for early massacres (breakdown of rule of law).

1.4.3.The Positive Cycle: How They Build and Sustain Peace

In a post-conflict setting, integrating these three elements is the core task of peacebuilding.

A. Human Rights: Addressing the Past, Securing the Future

- **Providing a Framework for Justice:** Human rights law provides the standards for addressing past atrocities through **Transitional Justice** mechanisms:
- **Prosecutions (Special Courts, ICC):** Uphold the rule of law and combat impunity.
- **Truth Commissions:** Acknowledge victims' suffering, establish a historical record, and recommend reforms.

- **Reparations:** Provide material and symbolic compensation to victims, restoring a sense of justice.
- **Institutional Reform:** Vetting security forces and judiciary to remove abusers and rebuild public trust.
- **Guiding Inclusion:** Human rights principles, especially **non-discrimination and equality**, mandate the inclusion of women, youth, minorities, and other marginalized groups in the peace process and future governance, as outlined in the **Women, Peace and Security (WPS)** and **Youth, Peace and Security (YPS)** UN agendas.

B. Democracy: Creating Legitimate and Inclusive Politics

Democracy in a peacebuilding context is not just about elections; it's about building **legitimate, participatory governance**.

- **Inclusive Peace Agreements:** Ensuring that all segments of society (not just warring parties) have a voice in peace talks makes the resulting agreement more durable and legitimate.
- **Post-Conflict Elections:** While risky if held too early, credible elections—managed by an independent body—can be a milestone that legitimizes a new government and provides a peaceful path for future political competition.
- **Strengthening Civil Society:** A vibrant civil society (NGOs, media, community groups) acts as a watchdog, provides services, and represents citizen interests, creating a buffer between the state and the people.
- **Decentralization:** Devolving power can be an effective way to manage ethnic or regional diversity and prevent the "winner-takes-all" politics that often fuels conflict.

C. The Rule of Law: The Bedrock of Trust and Predictability

The rule of law is arguably the most critical element for immediate post-conflict stability.

- **Monopoly on Legitimate Force:** Reforming the police and army to be professional, accountable, and human rights-compliant is essential. People must feel safe and protected by the state, not threatened by it.
- **Access to Justice:** Rebuilding courts and supporting traditional justice mechanisms ensures that citizens can resolve disputes over land, property, and family matters peacefully. This is often the most immediate demand of the population.

- **Combating Corruption:** Establishing anti-corruption commissions and strengthening financial oversight is vital. Corruption is a primary driver of grievance and directly undermines both democracy (by skewing politics) and human rights (by denying basic services).
- **Constitutional and Legal Reform:** Embedding human rights and democratic principles in the constitution and laws creates a lasting framework for the new peaceful order.

1.4.4. Current Challenges and Developing Debates

The integration of this triad in peacebuilding faces significant, modern challenges:

1. **The "Sequencing" Dilemma:** Which comes first? Stabilization through a strong (sometimes authoritarian) government, or democratization and justice? Pushing for elections too fast in an insecure environment with no rule of law can reignite conflict (e.g., Angola 1992). Delaying justice for the sake of stability can lead to renewed grievances.
2. **Illiberal Peace vs. Liberal Peace:** The "Liberal Peace" model (promoting Western-style democracy, human rights, and free markets) has been criticized for being top-down and ignoring local contexts. In response, some argue for an "Illiberal Peace" that prioritizes stability and order over rapid democratization, as seen in some post-conflict states like Rwanda. The challenge is to avoid trading short-term stability for long-term repression.
3. **Shrinking Civic Space:** A global trend of governments restricting NGOs, media, and activists is also affecting post-conflict states, undermining the democratic pillar of peacebuilding.
4. **Digital Authoritarianism:** New technologies allow emerging governments to surveil opponents, spread disinformation, and control the digital public sphere, eroding all three pillars in new ways.
5. **The "Sovereignty" Argument:** National governments often resist international pressure for human rights and justice, labeling it as foreign interference and a violation of their sovereignty, hiding behind the same "non-interference" principles that the OAU once used.

1.4.5.The "Sustaining Peace" Agenda: A Modern Synthesis

The current UN-led "**Sustaining Peace**" agenda is the direct operational response to these challenges. It reframes peacebuilding around this triad by emphasizing:

- **Primacy of Politics:** Acknowledging that peacebuilding is a political process, not just a technical one, requiring dialogue, negotiation, and compromise.
- **National Ownership:** Peace must be led and owned by the national population and institutions, not imposed by outsiders. This ensures local context is respected.
- **Inclusivity:** Mandating the meaningful participation of women, youth, civil society, and other marginalized groups in all stages of peacebuilding.
- **A Long-Term, Prevention-Focused Approach:** Shifting resources and attention from reacting to crises to preventing them by strengthening the resilient institutions of human rights, democracy, and the rule of law *before* conflict breaks out.

From a peacebuilding perspective, human rights, democracy, and the rule of law are an **indivisible nexus**.

- **Human rights without democracy and the rule of law** are merely aspirations on paper.
- **Democracy without human rights and the rule of law** can become a "tyranny of the majority."
- **The rule of law without democracy and human rights** can be an instrument of authoritarian control.

A simultaneous, context-sensitive, and long-term commitment to improving all three is necessary to build sustainable peace. It is the challenging task of changing the institutions, relationships, and structures that first gave rise to violence into a system where dispute is resolved peacefully, justly, and legally.